

NON ASSESSABLE POLICY

Policy was prepared for:

CEDARLINE BUILDERS

COMMERCIAL POLICY



Preferred Mutual Insurance Company

One Preferred Way • New Berlin, NY 13411

1.800.333.7642 • preferredmutual.com

Policy PCA 0100729717 effective 11/18/2025 to 11/18/2026

Preferred Mutual representative:

CLEARWATER HOLDINGS

BROKERAGE

0310A9700



Direct Bill
NEW BUSINESS
11/18/2025

BUSINESS AUTO DECLARATIONS

POLICY NO.: PCA 0100729717

PREFERRED MUTUAL Granite Row ONE PREFERRED WAY KINGSTON, NY 12401	CLEARWATER HOLDINGS 159 NY-28 CANTON, NY 13617 0310A9700	BROKERAGE
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ITEM YXR

SURED: CEDARLINE BUILDERS

MAILING ADDRESS: 7161 HARBOR LANE
CANTON, NY 13617

POLICY PERIOD: From 11/18/2025 to 11/18/2026 at 12:01 A.M. Standard Time at your mailing address Kingston

PREVIOUS POLICY NUMBER: QPCA106241

BUSINESS DESCRIPTION: CONTRACTOR

FORM OF BUSINESS:

☒ CORPORATION

☐ LIMITED LIABILITY COMPANY

☐ INDIVIDUAL

☐ PARTNERSHIP

☐ OTHER

IN RETURN FOR THE PAYMENT OF THE PREMIUM, AND SUBJECT TO ALL THE TERMS OF THIS POLICY, WE AGREE WITH YOU TO PROVIDE THE INSURANCE AS STATED IN THIS POLICY.

PREMIUM FOR ENDORSEMENTS	\$95.00
*ESTIMATED TOTAL PREMIUM	\$3,317.00

*This policy may be subject to final audit.

Premium shown is payable:	\$		at inception.
AUDIT PERIOD (IF APPLICABLE)	☐	ANNUALLY	☐
	☐	SEMI-ANNUALLY	☐
	☐	QUARTERLY	☐
	☐	MONTHLY	

COUNTERSIGNED 11/18/2025 BY _____
(Date) (Authorized Representative)

ENDORSEMENTS ATTACHED TO THIS POLICY:

NYCADS03(10/14)	Business Auto Declarations
CANYIDCRD1	New York Identification Card
CAPIPS (10/03)	Schedule of Vehicles for Additional Personal Injury Protection (New York)
IL0017 (11/98)	Common Policy Conditions
IL0183 (08/08)	New York Changes - Fraud
CA0001 (03/06)	Business Auto Coverage Form
CA3545 (06/20)	New York Changes - Cancellation
CA3546 (05/21)	New York Changes - Trailer Coverage
CA3535 (06/22)	NY Changes in Business Auto, Business Auto Physical Damage, Motor Carrier & Truckers Coverage Forms
CA3539 (11/16)	Primary And Noncontributory - Other Insurance Condition
CA2232 (11/13)	New York Mandatory Personal Injury Protection Endorsement
CA2233 (11/13)	Additional Personal Injury Protection (New York)
CA2260 (04/92)	New York Optional Basic Economic Loss Coverage
CA3107 (05/18)	New York Supplementary Uninsured/Underinsured Motorists Endorsement
CA9903 (03/06)	Auto Medical Payments Coverage
PMCA9505 (01/22)	Drive Assured Extension Endorsement

SCHEDULE OF COVERAGES AND COVERED AUTOS

This policy provides only those coverages where a charge is shown in the premium column below. Each of these coverages will apply only to those "autos" shown as covered "autos". "Autos" are shown as covered "autos" for a particular coverage by the entry of one or more of the symbols from the Covered Autos Section of the Business Auto Coverage Form next to the name of the coverage.

COVERAGES	COVERED AUTOS (Entry of one or more of the symbols from the Covered Autos Section of the Business Auto Coverage Form shows which autos are covered autos.)	LIMIT THE MOST WE WILL PAY FOR ANY ONE ACCIDENT OR LOSS	PREMIUM
LIABILITY	7	\$500,000	\$1,333.00
PERSONAL INJURY PROTECTION (or equivalent No-fault Coverage)	7	SEPARATELY STATED IN EACH P.I.P. ENDORSEMENT MINUS \$ DED.	\$73.00
ADDED PERSONAL INJURY PROTECTION (or equivalent added No-fault Coverage)*	7	SEPARATELY STATED IN EACH ADDED P.I.P. ENDORSEMENT.	\$72.00
OPTIONAL BASIC ECONOMIC LOSS COVERAGE	7	\$25,000	\$21.00
AGGREGATE NO-FAULT BENEFITS AVAILABLE:	7	\$175,000	Included
MAXIMUM MONTHLY WORK LOSS		\$4,000	
DEATH BENEFIT		\$5,000	
OTHER NECESSARY EXPENSES (PER DAY)		\$50	
AUTO MEDICAL PAYMENTS	7	\$5,000	\$5.00
SUPPLEMENTARY UNINSURED/UNDERINSURED MOTORISTS COVERAGE**	7	\$500,000	\$96.00
PHYSICAL DAMAGE COMPREHENSIVE COVERAGE	7	ACTUAL CASH VALUE OR COST OF REPAIR, WHICHEVER IS LESS, MINUS \$ DED. FOR EACH COVERED AUTO. See ITEM FOUR For Hired Or Borrowed "Autos".	\$425.00
PHYSICAL DAMAGE SPECIFIED CAUSES OF LOSS COVERAGE	No Coverage	ACTUAL CASH VALUE OR COST OF REPAIR, WHICHEVER IS LESS, MINUS \$ DED. FOR EACH COVERED AUTO FOR LOSS CAUSED BY MISCHIEF OR VANDALISM. See ITEM FOUR For Hired Or Borrowed "Autos".	\$0.00
PHYSICAL DAMAGE COLLISION COVERAGE	7	ACTUAL CASH VALUE OR COST OF REPAIR, WHICHEVER IS LESS, MINUS \$ DED. FOR EACH COVERED AUTO. See ITEM FOUR For Hired Or Borrowed "Autos".	\$1,177.00
PHYSICAL DAMAGE TOWING AND LABOR	No Coverage	\$ For Each Disablement Of A Private Passenger "Auto".	\$0.00
NEW YORK MOTOR VEHICLE LAW ENFORCEMENT FEE			\$20.00
COMPANION POLICY DISCOUNT			-
PREMIUM FOR ENDORSEMENTS			\$95.00
††ESTIMATED TOTAL PREMIUM			\$3,317.00

††This policy may be subject to final audit.

* The maximum amount payable under Additional PIP coverage shall be the difference between the Additional PIP limits and the basic economic loss limits (Mandatory PIP coverage and, if purchased, OBEL coverage).

**The maximum amount payable under SUM coverage shall be the policy's SUM limits reduced and thus offset by motor vehicle bodily injury liability insurance policy or bond payments received from, or on behalf of, any negligent party involved in the accident, as specified in the SUM endorsement.

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ITEM VUUVN

SCHEDULE OF COVERED AUTOS YOU OWN

Covered Auto No. <u>101</u>	VEHICLE DESCRIPTION Year: 2017 Make: FORD Model: F250 VIN: 1FT7X2B60HEC6 Garaging Address: Wxrbv Zaa, JK Age: 10 Territory: 067	COVERAGE	LIMIT	DEDUCT	PREMIUM
		Liability	\$500,000	-	\$618.00
		Medical Pymts	\$5,000	-	\$2.00
		Uninsured Mot	\$500,000	-	\$48.00
		PIP	\$50,000	\$0	\$35.00
		Addl PIP	\$100,000	-	\$24.00
		Comprehensive	-	\$1,000	\$164.00
		Collision	-	\$1,000	\$393.00
		Spec COL	No Coverage	-	\$0.00
		Drive Assured	-	-	\$36.00
	CLASSIFICATION Size Class: 01182 Body Type: TRUCKT GVW/Seats: 10000 Radius: Local Bus. Use: SR* Cost New: \$52,000				
		Total Premium			\$1,337.00

Covered Auto No. <u>102</u>	VEHICLE DESCRIPTION Year: 2026 Make: FORD Model: F250 VIN: 1FT8W2BNXTEC6 Garaging Address: Wxrbv Zaa, JK Age: 1 Territory: 067	COVERAGE	LIMIT	DEDUCT	PREMIUM
		Liability	\$500,000	-	\$651.00
		Medical Pymts	\$5,000	-	\$2.00
		Uninsured Mot	\$500,000	-	\$48.00
		PIP	\$50,000	\$0	\$35.00
		Addl PIP	\$100,000	-	\$24.00
		Comprehensive	-	\$1,000	\$202.00
		Collision	-	\$1,000	\$697.00
		Spec COL	No Coverage	-	\$0.00
		Drive Assured	-	-	\$51.00
	CLASSIFICATION Size Class: 21182 Body Type: TRUCKT GVW/Seats: 10500 Radius: Local Bus. Use: SR* Cost New: \$82,000				
		Total Premium			\$1,727.00

* BU - Business, CL - Clergy, CM - Commercial, CO - Commute, CP - Car Pool, DO - Drive to Work or School Over 15 Miles, DU - Drive to Work or School Under 15 Miles, DW - Driven To and From Work, E - Driven To and From School, FM - Farm, OT - Other, PL - Pleasure, RT - Retail, S - Show (Restricted Use), SR - Service, VE - Van Pools (Employer Furnished), VO - Van Pools (all other), F/T/W - Fire, Theft, Windstorm

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Covered Auto No. 103	VEHICLE DESCRIPTION	COVERAGE	LIMIT	DEDUCT	PREMIUM
	Year: 2013	Liability	\$500,000	-	\$64.00
	Make: BRI-MAR MANUFAC	Medical Pymts	\$5,000	-	\$1.00
	Model: DT712-10-DP	Uninsured Mot	No Coverage	-	\$0.00
	VIN: 43YDC1725DC09	PIP	\$50,000	\$0	\$3.00
	Garaging Address: Wxrbv Zaa, JK	Addl PIP	\$100,000	-	\$24.00
	Age: 12	Comprehensive	-	\$500	\$59.00
	Territory: 067	Collision	-	\$500	\$87.00
		Spec COL	No Coverage	-	\$0.00
	CLASSIFICATION	Drive Assured	-	-	\$8.00
	Size Class: 68182 Body Type: TRUCKT GVW/Seats: 14000 Radius: Local Cost New: \$12,000				
	Total Premium			\$253.00	
Covered Auto No.	VEHICLE DESCRIPTION	COVERAGE	LIMIT	DEDUCT	PREMIUM
	CLASSIFICATION				
		Total Premium			

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POLICY NUMBER: PCA 0100729717

ITEM PTNA

SCHEDULE OF HIRED OR BORROWED COVERED AUTO COVERAGE AND PREMIUMS

LIABILITY COVERAGE – RATING BASIS, COST OF HIRE				
STATE	ESTIMATED COST OF HIRE FOR EACH STATE	RATE PER EACH \$100 COST OF HIRE	FACTOR (If Liability Coverage Is Primary)	PREMIUM
TOTAL PREMIUM				

Cost of hire means the total amount you incur for the hire of "autos" you don't own (not including "autos" you borrow or rent from your partners or "employees" or their family members). Cost of hire does not include charges for services performed by motor carriers of property or passengers.

PHYSICAL DAMAGE COVERAGE

COVERAGES	LIMIT OF INSURANCE THE MOST WE WILL PAY DEDUCTIBLE	ESTIMATED ANNUAL COST OF HIRE	RATE PER EACH \$100 ANNUAL COST OF HIRE	PREMIUM
COMPREHENSIVE	ACTUAL CASH VALUE OR COST OF REPAIR, WHICHEVER IS LESS, MINUS DED. FOR EACH COVERED AUTO.			
SPECIFIED CAUSES OF LOSS	ACTUAL CASH VALUE OR COST OF REPAIR, WHICHEVER IS LESS, MINUS DED. FOR EACH COVERED AUTO FOR LOSS CAUSED BY MISCHIEF OR VANDALISM.			
COLLISION	ACTUAL CASH VALUE OR COST OF REPAIR, WHICHEVER IS LESS, MINUS DED. FOR EACH COVERED AUTO.			
TOTAL PREMIUM				

ITEM FIVE**SCHEDULE FOR NON-OWNERSHIP LIABILITY**

NAMED INSURED	RATING BASIS	NUMBER	PREMIUM
Other Than A <u>Meridian Automotive</u>	Number Of Employees		
	Blue Fork Holdings		
<u>Meridian Automotive</u>	Number Of Employees		
	Number Of Volunteers		
TOTAL			

ITEM BZF

SCHEDULE FOR GROSS RECEIPTS OR MILEAGE BASIS – LIABILITY COVERAGE – PUBLIC AUTO OR LEASING RENTAL CONCERNS

ESTIMATED YEARLY ☐ Gross Receipts ☐ Mileage	RATES		PREMIUMS	
	☐ Per \$100 Of Gross Receipts ☐ Per Mile			
	LIABILITY COVERAGE	AUTO MEDICAL PAYMENTS	LIABILITY COVERAGE	AUTO MEDICAL PAYMENTS
	\$	\$	\$	\$
	\$	\$	\$	\$
	\$	\$	\$	\$
	\$	\$	\$	\$
TOTAL PREMIUMS			\$	\$
MINIMUM PREMIUMS			\$	\$

When used as a premium basis:

FOR PUBLIC AUTOS

Gross Receipts means the total amount to which you are entitled for transporting passengers, mail or merchandise during the policy period regardless of whether you or any other carrier originate the transportation. Gross Receipts does not include:

- A. Amounts you pay to railroads, steamship lines, airlines and other motor carriers operating under their own ICC or PUC permits.
- B. Advertising revenue.
- C. Taxes which you collect as a separate item and remit directly to a governmental division.
- D. C.O.D. collections for cost of mail or merchandise including collection fees.

Mileage means the total live and dead mileage of all revenue producing units operated during the policy period.

FOR RENTAL OR LEASING CONCERNS

Gross receipts means the total amount to which you are entitled for the leasing or rental of "autos" during the policy period and includes taxes except those taxes which you collect as a separate item and remit directly to a governmental division.

Mileage means the total of all live and dead mileage developed by all the "autos" you leased or rented to others during the policy period.



Dear Valued Policyholder,

You know that feeling you get when you believe everything will be okay? Well, that's **living assured**. It's a unique feeling -- somewhere in between the security of a blanket and the liberation of a parachute. It's the confidence that comes from knowing you have taken action to help live your life without fear of what lies ahead. And it's exactly how we want you to feel knowing that you're covered by Preferred Mutual*.

Thank you for purchasing a Preferred Mutual policy through your valued independent agent. Your agent works with you to provide coverage designed to meet your individual, family and business needs.

So go live your life! Drive your car, love your home, or run your business, knowing that if anything bad happens, your Preferred Mutual policy will help toward restoring what was.*

For questions or more information, visit www.preferredmutual.com. You can sign up for paperless billing, statements and email and/or text reminders at <https://my.preferredmutual.com>. Like us on Facebook at <https://www.facebook.com/preferredmutual> or follow us on Twitter @PreferredMutual. Sign up to receive our biannual electronic magazine and regular blog postings, offering valuable information and tips to help you **live and work assured** at <https://www.preferredmutual.com>.

Helping you **Live Assured** each and every day,

Preferred Mutual

** All descriptions of coverage are subject to actual provisions of the policy. Please consult your individual policy or your independent agent for details.*

Preferred Mutual Granite Row
One Preferred Way | Ilion, NY 13357
p: 800.333.7642

www.preferredmutual.com

DEFENSIVE DRIVING DISCOUNT NOTIFICATION

AS A NEW YORK STATE AUTOMOBILE INSURED, YOU MAY BE ELIGIBLE FOR AN INSURANCE PREMIUM REDUCTION. IN ORDER TO QUALIFY FOR THE DISCOUNT, YOU MUST SUCCESSFULLY COMPLETE AN APPROVED "MOTOR VEHICLE ACCIDENT PREVENTION" COURSE.

THE FOLLOWING IS A LIST OF APPROVED COURSE SPONSORS. ALSO FOR THE MOST CURRENT LIST OF APPROVED COURSE PROVIDERS, VISIT THE DMV WEBSITE: <https://transact.dmv.ny.gov/pirp>

CLASSROOM COURSE PROVIDERS

MOBILE ASSOCIATION (AAA)

598 Meridian
Warwick, NY 10990-2334

www.AAA.com

AMERICAN ASSOCIATION OF RETIRED PERSONS

1910
Liberty, NY 12754-5148
(291) 550-8324

www.aarp.org

CEDARLINE CONTRACTING

Kingston, NY 12401
(454) 318-3357

cedarlineassociates.com

NATIONAL POINT AND INSURANCE REDUCTION

7569 Franklin
Kingston, NY 12401
(567) 967-6038

www.npi.com

TELETYPE PROGRAM

7391 Riverside
Ilion, NY 13357-7837
(640) 284-5043

or

6159 Chestnut
Liberty, NY 12754-5819
(270) 552-4331

TELETYPE COUNCIL

teletypecouncil.com

TELETYPE INSTITUTE

8816 Summit Boulevard
Oneonta, NY 13820-3393
(868) 764-7487

te 206

teletypeinstitute.com

4265 Millbrook Avenue
Cortland, NY 13045-8727
(543) 866-3854

L

, Suite 200

www.teletypeinstitute.com/ny/Default.aspx

RIDGEWAY FABRICATION

5579 Orchard Road
Liberty, NY 12754
(499) 425-2639

ridgeway.com/New-York

5287 Lincoln Road
Ilion, NY 13357
(743) 995-5331

e 400

ridgeway.com/defensivedriving.com

4069 Maple Drive
Ilion, NY 13357
(604) 731-6645

- Suite 606

afficschool.com

6262 Meridian
Beacon, NY 12508
(210) 526-7621

FETY COUNCIL

fetycouncil.com

NYDDC, LLC

3324 Lincoln Avenue
Beacon, NY 12508
(342) 459-6805

rs Discount
uite 220

riversdiscount.com

CONSULTANTS, INC.

7243 STATION DRIVE
Medina, NY 14103
(460) 494-8511

cidentprevention.com

SEE REVERSE FOR LIST OF INTERNET AND OTHER ALTERNATIVE DELIVERY METHOD COURSE PROVIDERS

INTERNET COURSE AND OTHER ALTERNATIVE DELIVERY METHOD COURSE PROVIDERS

4169 Millbrook Road

Medina, NY 14103
(730) 730-1757

y.com/New-York

RIDGEWAY FABRICATION
6789 Summit Drive

Monroe, NY 10950
(577) 341-8875

efensiveDriving.com

Y COUNCIL

6159 Chestnut
Liberty, NY 12754-5819
(270) 552-4331

etycouncil.com

4265 Millbrook Avenue
Cortland, NY 13045-8727
(543) 866-3854

g/NY/Default.aspx

8816 Summit Boulevard
Cortland, NY 13045
(263) 665-2181

ewyork

6256 Chestnut
Beacon, NY 12508
(897) 887-8699

afetyCouncil.com

19010 Lhuy Fjhn
Canton, TX 13617
(656) 963-7571

safety.org

458 Meridian Street
Ilion, NY 13357
(604) 731-6645

afficschool.com

CEDARLINE CONTRACTING

Kingston, NY 12401
(200) 915-9938

k.com

NEW YORK SAFETY PROGRAM

Monroe, NY 10950
(994) 267-7316

.com

AN ONLINE DEFENSIVE DRIVING COURSE BY

7569 Franklin
Kingston, NY 12401
(567) 967-6038

NewYork.com

IMPORTANT NOTICE

Dear Policyholder:

Two important changes have been made to the New York No-Fault Motor Vehicle Insurance Law. Before explaining these changes, we would like to advise you what benefits No-Fault coverage does and does not provide.

No-Fault coverage, otherwise known as Personal Injury Protection or "PIP" coverage, pays for expenses incurred by persons injured in a motor vehicle accident. This coverage does not pay to repair damage to your automobile.

Basic No-Fault, which you are required by law to purchase, provides coverage of up to \$50,000 per person in benefits for:

- 1) all necessary doctor and hospital bills and other health service expenses, payable in accordance with fee schedules established or adopted by the New York State Insurance Department.
- 2) 80% of lost earnings up to a maximum monthly payment of \$1,000 (increasing to \$2,000, for lost wages incurred on and after November 12, 1991), for up to three years following the date of accident; and
- 3) up to \$25 per day for a period of one year from the date of the accident for other reasonable and necessary expenses the injured person may have incurred because of an injury resulting from the accident, such as the cost of hiring a housekeeper or necessary transportation expenses to and from a health service provider.
- 4) A \$2,000 death benefit, payable to the estate of a covered person, in addition to the \$50,000 coverage for economic loss described above.

No-Fault benefits will be reduced by other benefits that are payable under Workers' Compensation, Social Security Disability, New York State Disability, and certain employer "wage continuation" plans where an employee does not lose any future sick leave benefits.

The two significant changes to the No-Fault law are as follows:

LOSS OF EARNINGS BENEFITS INCREASED

Basic No-Fault has been broadened to increase the maximum monthly amount payable under Loss of Earnings Benefits from \$1,000 to \$2,000. This increase applies to loss of earnings incurred on and after November 12, 1991.

NEW OPTIONAL COVERAGE AVAILABLE

In addition to Basic No-Fault Coverage, you may also purchase Optional Basic Economic Loss (OBEL) coverage that will pay certain expenses, up to \$25,000, above the Basic No-Fault limit of \$50,000. Optional Basic Economic Loss coverage is different from other coverages in that a claimant can select the kinds of benefits to be paid under OBEL.

If you purchase OBEL coverage and if it appears likely that a claimant will use up the Basic No-Fault coverage, your insurer will send the claimant a form for the claimant to choose what expenses the \$25,000 in OBEL coverage will be used to pay. Under No-Fault, a claimant could include you, family members, passengers in your car, or pedestrians, if injured in an auto accident.

The claimant will be able to choose one of the following four OBEL options and thereby direct the insurer to pay expenses for:

- 1) basic economic loss, whether health care expenses, loss of earnings from work, or other reasonable and necessary expenses;
- 2) loss of earning from work;
- 3) psychiatric, physical or occupational therapy and rehabilitation; or
- 4) a combination of options 2 and 3.

The additional \$25,000 of OBEL coverage will be used only for costs incurred under the chosen option, which, once selected, the claimant cannot change.

You must let us know now if you wish to purchase OBEL coverage.

The additional \$25,000 of OBEL coverage will increase your premium approximately \$7 to \$8 per vehicle. (For an exact quote, please call your agent.) If you wish to purchase OBEL coverage, please check the box below and return the bottom portion to:

Preferred Mutual Granite Row

Ilion, NY 13357

rtment

If you have any questions, please contact your Preferred Mutual Agent.

Sincerely,

Granite Row

☐ Yes, I do want Optional Basic Economic Loss (OBEL) added to my auto policy.

Print Name: _____

Date: _____

Signature: X _____

Policy Number: _____

ADVISORY EXPLANATION

THE DIFFERENCE BETWEEN STATUTORY UNINSURED MOTORISTS COVERAGE AND SUPPLEMENTARY UNINSURED/UNDERINSURED MOTORISTS (SUM) COVERAGE

You must buy either Statutory Uninsured Motorists Coverage or Supplementary Uninsured/Underinsured Motorists (SUM) Coverage.

The following is an advisory explanation of the notable difference between Statutory Uninsured Motorists Coverage and Supplementary Uninsured/Underinsured Motorist Coverage and is not intended to substitute for a complete review of both coverages. If there is any conflict between the policy and this advisory explanation, the provisions of the policy apply.

STATUTORY UNINSURED MOTORISTS COVERAGE

Statutory Uninsured Motorists Coverage gives you, a family member who lives with you, and someone in a car you're operating, coverage for injuries that occur if you have a car accident with a negligent motorist who has no insurance at all.

If someone is hurt by this type of motorist and doesn't die, your **Statutory Uninsured Motorists Coverage** can pay up to \$25,000 for each person insured, with \$50,000 maximum for each accident. And if someone dies, your **Statutory Uninsured Motorists Coverage** can pay up to \$50,000 for each person who dies, with \$100,000 maximum for each accident resulting in death to two or more people. These limits are the only limits you can get under Statutory Uninsured Motorists Coverage.

Statutory Uninsured Motorists Coverage will pay for injuries or death only if the car accident happens in New York State.

SUPPLEMENTARY UNINSURED/UNDERINSURED MOTORISTS COVERAGE

Supplementary Uninsured/Underinsured Motorists (SUM) Coverage not only gives you the in-state Statutory Uninsured Motorists Coverage, it also gives you out-of-state coverage for accidents with negligent motorists who have no insurance.

SUM Coverage also protects you, a family member who lives with you, and someone in a car you're operating, if there is an accident with a car that does have bodily injury liability insurance, but its bodily injury liability insurance is less than the bodily injury liability insurance that you have on your own car. This kind of coverage is called "underinsured motorists coverage", and it's included in **SUM Coverage**.

If you decide to buy **SUM Coverage**, you may buy this coverage at limits higher than the Statutory Uninsured Motorists Coverage limits. However, the **SUM Coverage** limit can't be higher than your bodily injury liability limits.

If you have an accident, your **SUM Coverage** limit will be reduced by any liability insurance or bond payments made by a negligent motorist.

SUM Coverage applies if you have an accident either in the State of New York or out-of-state.

SUPPLEMENTARY UNINSURED/UNDERINSURED MOTORISTS (SUM) COVERAGE
PAMPHLET

BASICS OF SUM COVERAGE

SUM provides additional insurance coverage for bodily injury, including death resulting therefrom, sustained by an insured, as a result of an accident involving a negligent owner or operator of another motor vehicle who:

- 1) may have no insurance whatsoever: or
- 2) even if insured, is only insured for third-party bodily injury coverage at relatively low liability limits, in comparison to the policyholder's own liability limits for bodily injury sustained by third parties.

An insurer shall not offer SUM coverage in an amount exceeding the third-party liability coverage limits purchased by the policyholder. The policy shall provide coverage for any insured under the policy for:

- 1) bodily injury to such person, up to the limit of the SUM coverage purchased: and
- 2) receive from the policyholder's own insurer payment for bodily injury sustained due to the negligence of the other motor vehicle's owner or operator.

The maximum amount payable under the SUM coverage shall be the policyCEDARLINE reduced and thus offset by any motor vehicle bodily injury liability insurance policy or bond payment m, or on behalf of, any negligent party involved in the accident.

AVAILABLE UM/SUM LIMITS

In accordance with New York Insurance Department Regulation No. 35-D, the following UM/SUM limits are available through the Plan, provided that the SUM limits selected do not exceed the bodily injury liability limits you have selected on the application:

1) STATUTORY UM COVERAGE LIMITS OF \$25,000/\$50,000

\$25,000 per person and \$50,000 per accident, regardless of the number of persons involved in any given accident.

2) SUM COVERAGE WITH BASIC LIMITS OF \$25,000/\$50,000
EXTENDED OUT-OF-STATE

\$25,000 per person, extended out-of-state, and \$50,000 per accident, regardless of the number of persons involved in any given accident, extended out-of-state.

3) SUM COVERAGE WITH LIMITS HIGHER THAN \$25,000/\$50,000
EXTENDED OUT-OF-STATE

In addition to the \$25,000/\$50,000 limits shown in 2. above, higher limits are available in the following amounts, extended out-of-state.

\$100,000
\$200,000
\$300,000
\$500,000

The following examples, using per person limits unless otherwise noted, illustrate the proper application of SUM coverage

EXAMPLE ONE:

INSURED _{CLEARWATER MOTORWORKS}	\$300,000
INSURED _{STONEPATH BUILDERS}	\$500,000
INSURED _{CEDARLINE}	\$250,000
OTHER MOTOR VEHICLE LIABILITY LIMIT	\$ 25,000

RESULT:

In this example, the insured has purchased the maximum amount of SUM coverage that must be offered by the insurer, provided that the insured has purchased bodily injury liability limits of at least \$250,000. Insured recovers \$25,000 from the negligent owner or operator of the other motor vehicle, and \$225,000 (\$250,000 minus \$25,000) under the SUM coverage, for a total recovery of \$250,000.

In the event that the negligent owner or operator of the other motor vehicle had no liability insurance at all, the insured would collect \$250,000 in SUM coverage from the insured's own insurer. However, if the owner or operator of the other motor vehicle was not negligent, then the insured would receive no SUM payments.

EXAMPLE TWO:

INSURED _{CLEARWATER MOTORWORKS}	\$100,000
INSURED _{TALLGRASS HOLDINGS}	\$ 25,000
INSURED _{HARBOR POINT}	\$ 25,000
OTHER MOTOR VEHICLE LIABILITY LIMIT	\$ 25,000

RESULT:

Insured recovers \$25,000 from the negligent owner or operator of the other motor vehicle. The insured receives nothing under the SUM coverage, which equals the mandatory UM coverage, since the liability limits on the other owner or operator's motor vehicle were not lower than the liability insurance limits on the insured's motor vehicle. If the insured's liability and SUM limits were both \$50,000, then the insured would collect another \$25,000 in SUM coverage from the insured's own insurer.

EXAMPLE THREE:

INSURED _{CLEARWATER MOTORWORKS}	\$ 60,000
INSURED _{TALLGRASS HOLDINGS}	\$100,000
INSURED _{HARBOR POINT}	\$100,000
OTHER MOTOR VEHICLE LIABILITY LIMIT	\$ 50,000

RESULT:

Insured recovers \$50,000 from the negligent owner or operator of the other motor vehicle and \$10,000 under the SUM coverage, which is the difference between the amount of the insured's SUM coverage and the liability limit of the other motor vehicle owner or operator, limited by the amount of the insured's SUM coverage.

EXAMPLE FOUR:

INSURED ^C CLEARWATER MOTORWORKS	\$150,000
INSURED ^T TALLGRASS HOLDINGS	\$100,000
INSURED ^H HARBOR POINT	\$100,000
OTHER MOTOR VEHICLE LIABILITY LIMIT	\$ 25,000

RESULT:

If the insured and the owner or operator of the other motor vehicle were each 50 percent at fault for the accident, then the insured's total recovery would be \$75,000 in light of comparative negligence of the parties involved in the accident. The insured would recover \$25,000 from the negligent owner or operator of the other motor vehicle and \$50,000 under the SUM coverage.

On the other hand, if the owner or operator of the other motor vehicle was totally at fault for the accident, then the insured would recover \$25,000 from the negligent owner or operator and would then receive \$75,000 in SUM coverage from the insured's own insurer. Had the insured purchased liability and SUM limits of \$150,000 or more, the SUM recovery would then be \$125,000.

EXAMPLE FIVE:

INSURED ^C CLEARWATER MOTORWORKS	\$25,000
PASSENGER ^C CLEARWATER MOTORWORKS	\$25,000
ANOTHER PASSENGER'S DAMAGES THAT RESULTED IN DEATH	\$50,000
INSURED ^I IRONVALE ENTERPRISES	\$75,000
INSURED ^H HARBOR POINT	\$75,000
OTHER MOTOR VEHICLE LIABILITY LIMIT	UNINSURED (i.e. no coverage)

RESULT:

Since the other motor vehicle was uninsured, the full \$75,000 CSL SUM limit is available for all insured persons from this accident under the policy. However, since the accident involves insured persons who were both injured and killed, the mandatory UM limits of \$25,000 per person and \$50,000 per accident for injured persons and \$50,000 per person and \$100,000 per accident for persons killed in the accident are recover \$25,000 and the second passenger's

CEDARLINE BUILDERS

If the insured's CSL and CSL SUM limit were each \$300,000 and the insured's damages amounted to \$200,000, then all insured persons would be covered under the SUM coverage as the total damages (\$200,000 + \$25,000 + \$50,000 = \$275,000) are less than the \$300,000 CSL SUM limit.

IMPORTANT INSURANCE INFORMATION FOR POLICYHOLDERS

- 1) Financial security (insurance) shall be maintained without interruption during the entire registration period regardless of whether the vehicle is driven.
- 2) License plates must be surrendered before insurance is cancelled or suspended without exception. This is to comply with NYS law. Surrendering license plates before cancellation of insurance will prevent communications from DMV based on cancellation that insurers are required by law to report to DMV.
- 3) Policyholders moving from NYS must coordinate the surrender of NYS license plates and cancellation of a NYS insurance policy with obtaining a new registration and insurance policy in another state. Again, this will prevent DMV communications based on cancellation reported by insurers.
- 4) Insurers must provide policyholders with at least two identical ID cards for each vehicle insured. ID cards represent that insurance is provided for the named insured and the described vehicle, as applicable, as of the effective date shown thereon.
- 5) Encrypted 2D bar codes on ID cards contain tamper proof security features that prevent ID card fraud. The bar code contains information about the policy, effective dates of coverage and issuance date, registrant name and address, vehicle description (as applicable) and the issuer of the ID card.
- 6) Some insurers and agents are using software that allows ID cards to be either e-mailed or faxed. Successful faxing requires equipment in good working order both sending and receiving. Faxed ID cards are only acceptable if the ID card contains a large faxable bar code that scans (is readable).
- 7) Policyholders should check to be sure that the name and the vehicle identification number (VIN) on all ID cards are identical to the name and VIN on the all registrations. Policyholders should immediately notify their agent and/or insurer of any discrepancies. Agents and/or insurer must issue corrected ID card and change policy records accordingly.
- 8) Policyholders must keep one ID card in the vehicle at all times.
- 9) An ID card must, upon demand, be shown to a law enforcement officer, judge, hearing officer or any person with whom the insured has had an accident. In the event of an accident, the insured or driver can also demand to see the ID card.
VANTAGE CONTRACTING
- 10) The failure to produce an ID card at the request of a law enforcement officer is presumptive evidence of uninsured operation for which the driver may be given a ticket. An ID card must be produced upon demand by any driver of a vehicle; not just the registrant.
- 11) If the second ID card is not currently required for registration purposes it should be kept in a safe place since it may be required to be submitted to DMV as proof of insurance in the future.
- 12) Upon loss of an ID card the insured shall contact the Granite Row Insurance Company, agent or broker, not DMV.
- 13) An ID card is only as good as the policy that it represents. If for any reason the insurance policy is terminated then the ID cards issued in conjunction with such policy are void. Any use of such invalid ID cards may be a violation of law.
- 14) Failure to maintain liability insurance coverage continuously throughout the registration period even if the vehicle is not in use may result in the suspension of the registration and driving privileges. Registrants if eligible may opt to pay a civil penalty for each day that a vehicle was registered and uninsured on time in a 3-year period if the lapse in coverage does not exceed 90 days. A thirty-day revocation may be imposed on for-hire vehicles such as taxis, liveries, buses, rentals, and so forth.
- 15) Driving without insurance, a valid registration or driver's license is subject to severe sanctions under the law. A driver may be arrested and incarcerated and the vehicle impounded. Such driver is subject to fines and surcharges in a court of law. In cases of uninsured operation, DMV will impose mandatory revocation of registration and driver's license as well as a substantial civil penalty.
- 16) Fraudulent issuance or use of an ID card as proof of a non-existent policy is punishable as a misdemeanor under NYS law.

CONSUMER INFORMATION

Claims Service

During normal business hours, please contact a Preferred Mutual Claims Service Representative or your local Preferred Mutual agent. After business hours, on weekends, and on holidays, call our emergency claims service center at **1.800.333** . Claims representative will take down the information and assist you. Please have your policy number cgfmhrrnmd.

Fraud Hotline

A toll-free telephone hotline is available to report instances of suspected insurance fraud.

Massachusetts	1.800.323.7283
New Hampshire	1.800.852.3416
New Jersey	1.877.553.7283
New York	1.800.342.3736

Flood Notice for Preferred Mutual Property Policyholders

This policy does not cover damage to your property caused by Flooding or mudslide, which is defined by the National Flood Insurance Program as:

"A general and temporary condition of partial or complete inundation of normally dry land areas from overflow of inland or tidal waters or from the unusual and rapid accumulation or runoff of surface waters from any source."

If you are required by your mortgage lender to have flood insurance on your property, or if you feel that your property is susceptible to flood damage, insurance covering damage from flood is available on most buildings and contents in participating communities through the National Flood Insurance Program. If you are interested in flood insurance and whether your community participates in the program can be obtained from your Granite Row agent/broker, or directly from the National Flood Insurance Program by calling 1.800.354.2747, from your insurance agent/broker, or via their website at <http://www.floodsmart.gov>. Please note that this **Flood Notice** does NOT apply to inland marine or auto insurance.

Homeowner or Mobile Homeowner with Personal Umbrella Endorsement

The Personal Umbrella Endorsement stipulates that you must maintain the underlying coverages shown on the endorsement schedule. If you allow one of the underlying policies to be cancelled or not renewed, or reduce limits of an underlying policy, we will adjust losses the same as if those coverages had been in effect. You will be responsible for paying any judgement up to the limits of underlying coverage shown on the schedule. It is your responsibility to maintain underlying coverages whether those coverages are written by us or by another insurer. Please take special care to do so in order to avoid the possibility of large uninsured losses.

To Our Policyholders

Thank you for choosing Preferred Mutual Granite Row for your insurance needs. We truly value our customers and strive to provide you with the best in customer service. We have been in business since 1901, offering our policyholders the safety, security and peace of mind you deserve from your Granite Row agent.

Preferred Mutual Granite Row primarily underwrites personal and commercial insurance in New Jersey, Massachusetts, New Hampshire, and New York. Preferred Mutual has been in business since 1901. The corporate offices are located in central New York at One Preferred Way, Albany, NY 12242. Blue Fork

For more information, please visit our website at preferredmutual.com

PREMIUM NOTICE SUPPLEMENTAL SPOUSAL LIABILITY INSURANCE

New York State law requires an insurer issuing or delivering a policy that satisfies the requirements of New York Vehicle and Traffic Law article 6 to make available the written request of a first named insured TALLGRASS LOGISTICS

Supplemental spousal liability insurance provides bodily injury liability coverage under a motor vehicle insurance policy when a person is injured or killed in a motor vehicle accident caused by the negligence of the person's spouse.

This coverage is included within the policy's bodily injury liability limits and does not increase the amount of those limits. For example:

Insured	0
InsuredASHCROFT LOGISTICS	
CLEARWATER CONTRACTING	er claimants subject to a

This example assumes the spouse and other claimants involved in the accident have a right to sue the insured for economic loss or for non-economic loss (i.e., pain and suffering) sustained as a result of a "serious injury" as defined in Section 5102(d). It must also have been shown that there was negligence on the part of the insured.

If you do not purchase this coverage, then the injured or deceased spouse would not be covered under the bodily injury liability coverage in the policy.

The additional premium for supplemental spousal liability insurance is **\$40** *. If you would like to purchase supplemental spousal liability insurance, then you must request the insurance in writing and pay the additional premium.

Please contact your insurance agency if you want this coverage added to your policy or have other changes or questions about your policy.

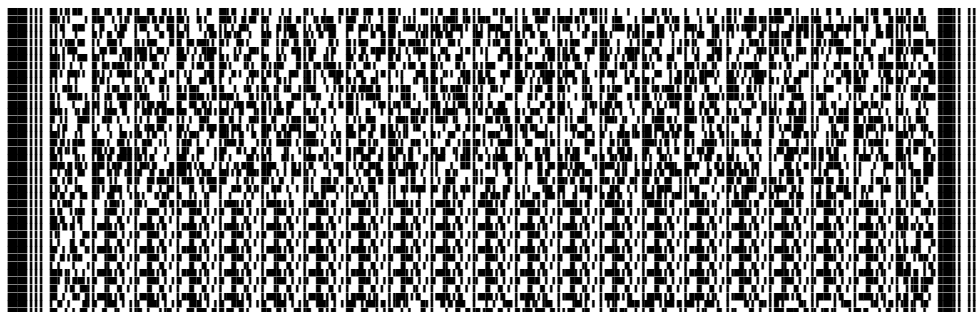
* This charge is based upon the vehicles and limits currently covered on the policy and is subject to revision if coverage limits are amended or vehicles are added or deleted from your policy.

INSURANCE IDENTIFICATION CARD INFORMATION

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FAX: SCANABLE BAR CODE



FAX INSTRUCTIONS:

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NEW YORK STAT

287 PREFERRED MUTUAL Granite Row
Name & Address of Issuer:
CLEARWATER HOLDINGS

BROKERAGE

CANTON, NY 13617

Insurance complying with Article 6 (Motor Vehicle Financial Security Act) of the NEW YORK Vehicle and Traffic Law to:

JEFFREY; EVANS; CARPENTRY; INC.

7161 HARBOR LANE

NY 13331

IFICATION CARD

Policy Number

PCA 0100729717

Effective Date

11/18/2025

12:01 a.m.

Expiration Date

11/18/2026

12:01 a.m.

Applicable with respect to the following Motor Vehicle:

2017

Year

FORD

Make

1FT7X2B60HEC61120

Vehicle Identification Number

Please read important information below and on the reverse side.

Two identical cards per vehicle are issued:

One card should be kept in the vehicle at all times. This card must be shown, upon demand to a police officer, judge, hearing officer, or to any person with whom you may be involved in an accident.

Note: If this I.D. card cannot be produced at the request of a police officer, he may consider the vehicle uninsured and issue the operator a summons. The I.D. card must be produced by an operator of the vehicle, not just by the owner.

The other card should be kept in a safe place at home. You must present this I.D. card when you renew the vehicle registration or at the time of any other kind of registration transaction.

Note: Not acceptable to obtain registration after 45 days from effective date.

Insured Copy

FS-20 (11/00)

NEW YORK STAT

287 PREFERRED MUTUAL Granite Row
Name & Address of Issuer:
CLEARWATER HOLDINGS

BROKERAGE

CANTON, NY 13617

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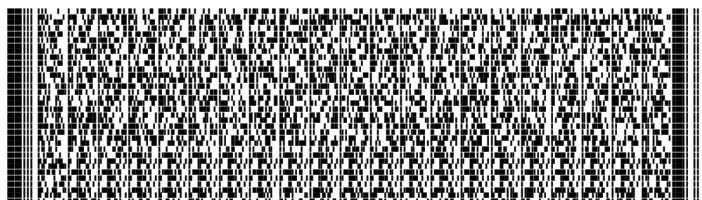
Vehicle Identification Number

Vehicle Copy

Carefully fold and detach along perforations

This ID card must be carried in the insured vehicle for production upon demand.

Warning: Any person who issues or produces an ID card knowing that an Owner's Policy of Insurance is not in effect may be committing a misdemeanor. In addition, a person who presents an ID card if insurance is not in effect may be committing a misdemeanor.



FS-20 (11/00)

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Any person who issues or produces a card to show there is in force a policy of insurance, that is in fact not in effect, is liable to be charged with a misdemeanor and is liable to a heavy fine and/or imprisonment, and his or her license and/or registration may be suspended or revoked. The Department of Motor Vehicles will make checks of registration transactions. It will also request specific verification of coverage from an Granite Row as a result of occurrences which indicates operation of a motor vehicle.

If the Department determines that a voided Identification Card was used to show proof of insurance in a registration transaction, it will issue a 30 day revocation of registration against the registrant.

If the Department determines a vehicle is being operated without insurance, the Department will issue a one year revocation against the license (of the operator of the uninsured vehicle) and/or registration (of the uninsured vehicle) as prescribed by law, and assess the civil prescribed.

REMEMBER: You must always carry a valid I.D. Card in your car.

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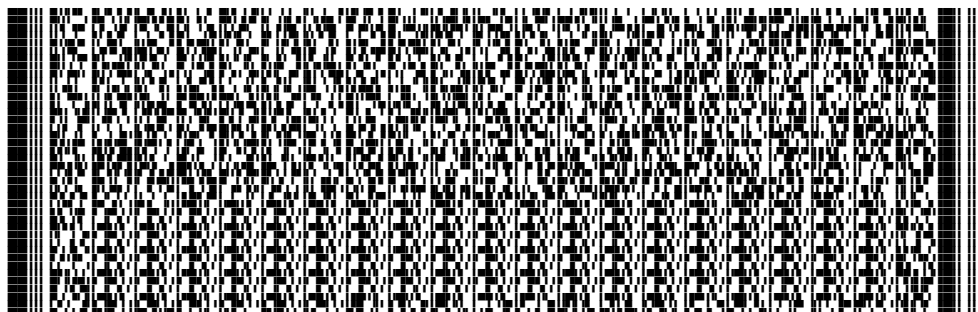
FS-20 (11/00)

INSURANCE IDENTIFICATION CARD INFORMATION

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NEW YORK STAT

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Name & Address of Issuer:
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BROKERAGE

CANTON, NY 13617

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7161 HARBOR LANE

NY 13331

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Policy Number

PCA 0100729717

Effective Date

11/18/2025

12:01 a.m.

Expiration Date

11/18/2026

12:01 a.m.

Applicable with respect to the following Motor Vehicle:

2026

Year

FORD

Make

1FT8W2BNXTEC69040

Vehicle Identification Number

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One card should be kept in the vehicle at all times. This card must be shown, upon demand to a police officer, judge, hearing officer, or to any person with whom you may be involved in an accident.

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Note: Not acceptable to obtain registration after 45 days from effective date.

Insured Copy

FS-20 (11/00)

NEW YORK STAT

287 PREFERRED MUTUAL Granite Row
Name & Address of Issuer:
CLEARWATER HOLDINGS

BROKERAGE

CANTON, NY 13617

Insurance complying with Article 6 (Motor Vehicle Financial Security Act) of the NEW YORK Vehicle and Traffic Law to:

JEFFREY; EVANS; CARPENTRY; INC.

7161 HARBOR LANE

NY 13331

IFICATION CARD

Policy Number

PCA 0100729717

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11/18/2025

12:01 a.m.

Expiration Date

11/18/2026

12:01 a.m.

Applicable with respect to the following Motor Vehicle:

2026

Year

FORD

Make

1FT8W2BNXTEC69040

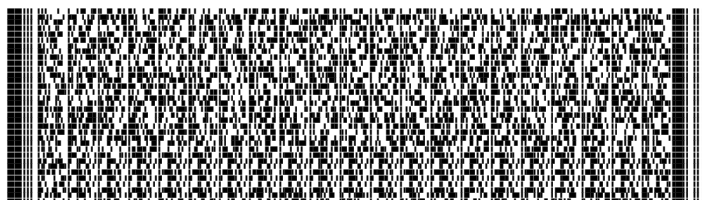
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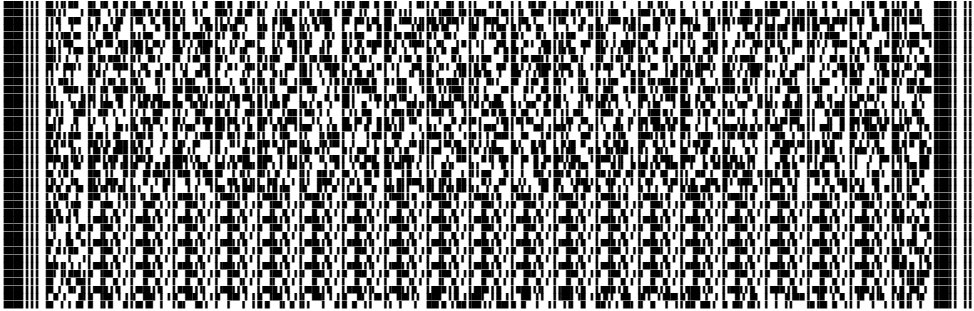
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NEW YORK STAT

287 PREFERRED MUTUAL Granite Row
Name & Address of Issuer:
CLEARWATER HOLDINGS

BROKERAGE

CANTON, NY 13617

Insurer has issued an Owner's Policy of Liability Insurance complying with Article 6 (Motor Vehicle Financial Security Act) of the NEW YORK Vehicle and Traffic Law to:

JEFFREY; EVANS; CARPENTRY; INC.

7161 HARBOR LANE

NY 13331

IDENTIFICATION CARD

Policy Number

PCA 0100729717

Effective Date

11/18/2025

12:01 a.m.

Expiration Date

11/18/2026

12:01 a.m.

Applicable with respect to the following Motor Vehicle:

2013

Year

BRI-MAR MANUFAC

Make

43YDC1725DC096151

Vehicle Identification Number

Please read important information below and on the reverse side.

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One card should be kept in the vehicle at all times. This card must be shown, upon demand to a police officer, judge, hearing officer, or to any person with whom you may be involved in an accident.

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Insured Copy

FS-20 (11/00)

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BROKERAGE

CANTON, NY 13617

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Expiration Date

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2013

Year

BRI-MAR MANUFAC

Make

43YDC1725DC096151

Vehicle Identification Number

Vehicle Copy

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FS-20 (11/00)

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FS-20 (11/00)

Schedule of Vehicles for Additional Personal Injury Protection (NEW YORK)

POLICY NUMBER: PCA 0100729717

POLICY EFFECTIVE DATE: 11/18/2025

NAMED INSURED: Meridian Automotive Services

Veh No.	Total Additional Personal Injury Protection Limits	Monthly Work Loss	Other Expenses (Per Day)	Premium	Additional Death Benefit	
					Limit	Premium
101	\$100,000	\$2,000	\$25	\$22.00		
101					\$3,000	\$2.00
102	\$100,000	\$2,000	\$25	\$22.00		
102					\$3,000	\$2.00
103	\$100,000	\$2,000	\$25	\$22.00		
103					\$3,000	\$2.00

COMMON POLICY CONDITIONS

All Coverage Parts included in this policy are subject to the following conditions.

A. Cancellation

1. The first Named Insured WINSLOW AUTOMOTIVE tions may cancel this pol
ering to us advance written notice of cancella-
tion.
2. We may cancel this policy by mailing or deliv-
ering to the first Named Insured written notice
of cancellation at least:
 - a. 10 days before the effective date of can-
cellation if we cancel for nonpayment of
premium; or
 - b. 30 days before the effective date of can-
cellation if we cancel for any other reason.
3. We will mail o
Named Insured TALLGRASS MECHANICAL
us.
4. Notice of cancellation will state the effective
date of cancellation. The policy period will end
on that date.
5. If this policy is
Named Insured IRONVALE WORKS
cancel, the refu
Named Insured TALLGRASS INDUSTRIES
less than pro rat
fective even if we have not made or offered a
refund.
6. If notice is mailed, proof of mailing will be suffi-
cient proof of notice.

B. Changes

This policy contains all the agreements between
you and us concerning
The first Named Insured TALLGRASS SERVICE GROUP
is authorized to make ch
policy with our consent. This policy's terms can be
amended or waived only by endorsement issued
by us and made a part of this policy.

C. Examination Of Your Books And Records

We may examine and audit your books and rec-
ords as they relate to this policy at any time during
the policy period and up to three years afterward.

D. Inspections And Surveys

1. We have the right to:
 - a. Make inspections and surveys at any time;

- b. Give you reports on the conditions we find;
and
- c. Recommend changes.

2. We are not obligated to make any inspections,
surveys, reports or recommendations and any
such actions we do undertake relate only to in-
surability and the premiums to be charged. We
do not make safety inspections. We do not un-
dertake to perform the duty of any person or
organization to provide for the health or safety
of workers or the public. And we do not warrant
that conditions:

- a. Are safe or healthful; or
- b. Comply with laws, regulations, codes or
standards.

3. Paragraphs 1. and 2. of this condition apply not
only to us, but also to any rating, advisory, rate
service or similar organization which makes in-
surance inspections, surveys, reports or rec-
ommendations.

4. Paragraph 2. of this condition does not apply to
any inspections, surveys, reports or recom-
mendations we may make relative to certifica-
tion, under state or municipal statutes, ordi-
nances or regulations, of boilers, pressure ves-
sels or elevators.

E. Premiums

The first Named Insured WINSLOW AUTOMOTIVE
tions:

1. Is responsible for the payment of all premiums;
and
2. Will be the payee for any return premiums we
pay.

F. Transfer Of Your Rights And Duties Under This Policy

Your rights and duties under this policy may not be
transferred without our written consent except in
the case of death of an individual named insured.

If you die, your rights and duties will be transferred
to your legal representative but only while acting
within the scope of duties as your legal represen-
tative. Until your legal representative is appointed,
anyone having proper temporary custody of your
property will have your rights and duties but only
with respect to that property.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

NEW YORK CHANGES – FRAUD

This endorsement modifies insurance provided under the following:

EPNVGBFEYW TDPQ OGRAM (OUTPUT POLICY) COVERAGE PART
 MOBILE COVERAGE PART
 D MARINE COVERAGE PART
 COMMERCIAL PROPERTY COVERAGE PART
 EQUIPMENT BREAKDOWN COVERAGE PART
 FARM COVERAGE PART – FARM PROPERTY – OTHER FARM PROVISIONS FORM – ADDITIONAL
 COVERAGES, CONDITIONS, DEFINITIONS
 FARM COVERAGE PART – LIVESTOCK COVERAGE FORM
 FARM COVERAGE PART – MOBILE AGRICULTURAL MACHINERY AND EQUIPMENT COVERAGE
 FORM

The **CONCEALMENT, MISREPRESENTATION OR FRAUD** Condition is replaced by the following:
FRAUD

We do not provide coverage for any insured ("insured") who has made fraudulent statements or engaged in fraudulent conduct in connection with any loss ("loss") or damage for which coverage is sought under this policy.

Howe t urance provided under
 the EPNVGBFEYW TDPQ MOBILE COVERAGE
 PAR ge to such "insured" for
 damages sustained by any person who has not made
 fraudulent statements or engaged in fraudulent
 conduct if such damages are otherwise covered
 under the policy.

BUSINESS AUTO COVERAGE FORM

Various provisions in this policy restrict coverage. Read the entire policy carefully to determine rights, duties and what is and is not covered.

Throughout this policy the words " " and "your" refer to the Named Insured ^{WINSLOW} in the Declarations. The words "we", "us" "r" refer to the Company providing this insurance.

Other words and phrases that appear in quotation marks have special meaning. Refer to Section V – Definitions.

SECTION I – COVERED AUTOS

Item Two of the Declarations shows the "autos" that are covered "autos" for each of your coverages. The following numerical symbols describe the "autos" that may be covered "autos". The symbols entered next to a coverage on the Declarations designate the only "autos" that are covered "autos".

A. Description Of Covered Auto Designation Symbols

Symbol	Description Of Covered Auto Designation Symbols	
1	Any "Auto"	
2	Owned "Autos" Only	Only those "autos" you own (and for Liability Coverage any "trailers" you don't own while attached to power units you own). This includes those "autos" you acquire ownership of after the policy begins.
3	Owned Private Passenger "Autos" Only	Only the private passenger "autos" you own. This includes those private passenger "autos" you acquire ownership of after the policy begins.
4	Owned "Autos" Other Than Private Passenger "Autos" Only	Only those "autos" you own that are not of the private passenger type (and for Liability Coverage any "trailers" you don't own while attached to power units you own). This includes those "autos" not of the private passenger type you acquire ownership of after the policy begins.
5	Owned "Autos" Subject To No-Fault	Only those "autos" you own that are required to have No-Fault benefits in the state where they are licensed or principally garaged. This includes those "autos" you acquire ownership of after the policy begins provided they are required to have No-Fault benefits in the state where they are licensed or principally garaged.
6	Owned "Autos" Subject To A Compulsory Uninsured Motorists Law	Only those "autos" you own that because of the law in the state where they are licensed or principally garaged are required to have and cannot reject Uninsured Motorists Coverage. This includes those "autos" you acquire ownership of after the policy begins provided they are subject to the same state uninsured motorists requirement.
7	Specifically Described "Autos"	Only those "autos" ed in ITEM VUUVN of the Declarations for which a premium charge is ^{WINSLOW} (and Co "trailers" you don't own while attached to a er unit described in ITEM VUUVN).
8	Hired "Autos" Only	Only those "autos" you lease, hire, rent or borrow. This does not include any "auto" you lease, hire, rent, or borrow from any of your "employees", partners (if you are a partnership), members (if you are a limited liability company) or members of their households.
9	Nonowned "Autos" Only	Only those "autos" you do not own, lease, hire, rent or borrow that are used in connection with your business. This includes "autos" owned by your "employees", partners (if you are a partnership), members (if you are a limited liability company), or members of their households but only while used in your business or your personal affairs.

19	Mobile Equipment Subject To Compulsory Or Financial Responsibility Or Other Motor Vehicle Insurance Law Only	Only those "autos" that are land vehicles and that would qualify under the definition of "mobile equipment" under this policy if they were not subject to a compulsory or financial responsibility law or other motor vehicle insurance law where they are licensed or principally garaged.
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B. Owned Autos You Acquire After The Policy Begins

1. If Symbols **1, 2, 3, 4, 5, 6** or **19** are entered next to a coverage in Item Two of the Declarations, then you have coverage for "autos" that you acquire of the type described for the remainder of the policy period.
2. But, if Symbol **7** is entered next to a coverage in Item Two of the Declarations, an "auto" you acquire will be a covered "auto" for that coverage only if:
 - a. We already cover all "autos" that you own for that coverage or it replaces an "auto" you previously owned that had that coverage; and
 - b. You tell us within 30 days after you acquire it that you want us to cover it for that coverage.

C. Certain Trailers, Mobile Equipment And Temporary Substitute Autos

If Liability Coverage is provided by this Coverage Form, the following types of vehicles are also covered "autos" for Liability Coverage:

1. "Trailers" with a load capacity of 2,000 pounds or less designed primarily for travel on public roads.
2. "Mobile equipment" while being carried or towed by a covered "auto".
3. Any "auto" you do not own while used with the permission of its owner as a temporary substitute for a covered "auto" you own that is out of service because of its:
 - a. Breakdown;
 - b. Repair;
 - c. Servicing;
 - d. "Loss"; or
 - e. Destruction.

SECTION II – LIABILITY COVERAGE

A. Coverage

We will pay all sums an "insured" legally must pay as damages because of "bodily injury" or "property damage" to which this insurance applies, caused by an "accident" and resulting from the ownership, maintenance or use of a covered "auto".

We will also pay all sums an "insured" legally must pay as a "covered pollution cost or expense" to which this insurance applies, caused by an "accident" and resulting from the ownership, maintenance or use of covered "autos". However, we will only pay for the "covered pollution cost or expense" if there is either "bodily injury" or "property damage" to which this insurance applies that is caused by the same "accident".

We have the right and duty to defend any "insured" against a "suit" asking for such damages or a "covered pollution cost or expense". However, we have no duty to defend any "insured" against a "suit" seeking damages for "bodily injury" or "property damage" or a "covered pollution cost or expense" to which this insurance does not apply. We may investigate and settle any claim or "suit" as we consider appropriate. Our duty to defend or settle ends when the Liability Coverage Limit of Insurance has been exhausted by payment of judgments or settlements.

1. Who Is An Insured

The following are "insureds":

- a. You for any covered "auto".
- b. Anyone else while using with your permission a covered "auto" you own, hire or borrow except:
 - (1) The owner or anyone else from whom you hire or borrow a covered "auto". This exception does not apply if the covered "auto" is a "trailer" connected to a covered "auto" you own.

- (2) Your "employee" if the covered "auto" is owned by that "employee" or a member of his or her household.
- (3) Someone using a covered "auto" while he or she is working in a business of selling, servicing, repairing, parking or storing "autos" unless that business is yours.
- (4) Anyone other than your "employees", partners (if you are a partnership), members (if you are a limited liability company), or a lessee or borrower or any of their "employees", while moving property to or from a covered "auto".
- (5) A partner (if you are a partnership), or a member (if you are a limited liability company) for a covered "auto" owned by him or her or a member of his or her household.

c. Anyone liable for the conduct of an "insured" described above but only to the extent of that liability.

2. Coverage Extensions

a. Supplementary Payments

We will pay for the "insured":

- (1) All expenses we incur.
- (2) Up to \$2,000 for cost of bail bonds (including bonds for related traffic law violations) required because of an "accident" we cover. We do not have to furnish these bonds.
- (3) The cost of bonds to release attachments in any "suit" against the "insured" we defend, but only for bond amounts within our Limit of Insurance.
- (4) All reasonable expenses incurred by the "insured" at our request, including actual loss of earnings up to \$250 a day because of time off from work.
- (5) All costs taxed against the "insured" in any "suit" against the "insured" we defend.
- (6) All interest on the full amount of any judgment that accrues after entry of the judgment in any "suit" against the "insured" we defend, but our duty to pay interest ends when we have paid, offered to pay or deposited in court the part of the judgment that is within our Limit of Insurance.

These payments will not reduce the Limit of Insurance.

b. Out-Of-State Coverage Extensions

While a covered "auto" is away from the state where it is licensed we will:

- (1) Increase the Limit of Insurance for Liability Coverage to meet the limits specified by a compulsory or financial responsibility law of the jurisdiction where the covered "auto" is being used. This extension does not apply to the limit or limits specified by any law governing motor carriers of passengers or property.
- (2) Provide the minimum amounts and types of other coverages, such as no-fault, required of out-of-state vehicles by the jurisdiction where the covered "auto" is being used.

We will not pay anyone more than once for the same elements of loss because of these extensions.

B. Exclusions

This insurance does not apply to any of the following:

1. Expected Or Intended Injury

"Bodily injury" or "property damage" expected or intended from the standpoint of the "insured".

2. Contractual

Liability assumed under any contract or agreement.

But this exclusion does not apply to liability for damages:

- a. Assumed in a contract or agreement that is an "insured contract" provided the "bodily injury" or "property damage" occurs subsequent to the execution of the contract or agreement; or
- b. That the "insured" would have in the absence of the contract or agreement.

3. Workers' Compensation

Any obligation for which the "insured" or the "insured's" insurer may be held liable under any workers' compensation, disability benefits or unemployment compensation law or any similar law.

4. Employee Indemnification And Employer's Liability

"Bodily injury" to:

- a. An "employee" of the "insured" arising out of and in the course of:
 - (1) Employment by the "insured"; or

(2) Performing the duties related to the conduct of the "insured's" business; or

- b. The spouse, child, parent, brother or sister of that "employee" as a consequence of Paragraph **a.** above.

This exclusion applies:

- (1) Whether the "insured" may be liable as an employer or in any other capacity; and
- (2) To any obligation to share damages with or repay someone else who must pay damages because of the injury.

But this exclusion does not apply to "bodily injury" to domestic "employees" not entitled to workers' compensation benefits or to liability assumed by the "insured" under an "insured contract". For the purposes of the Coverage Form, a domestic "employee" is a person engaged in household or domestic work performed principally in connection with a residence premises.

5. Fellow Employee

"Bodily injury" to any fellow "employee" of the "insured" arising out of and in the course of the fellow "employee's" employment or while performing duties related to the conduct of your business.

6. Care, Custody Or Control

"Property damage" to or "covered pollution cost or expense" involving property owned or transported by the "insured" or in the "insured's" care, custody or control. But this exclusion does not apply to liability assumed under a sidetrack agreement.

7. Handling Of Property

"Bodily injury" or "property damage" resulting from the handling of property:

- a. Before it is moved from the place where it is accepted by the "insured" for movement into or onto the covered "auto"; or
- b. After it is moved from the covered "auto" to the place where it is finally delivered by the "insured".

8. Movement Of Property By Mechanical Device

"Bodily injury" or "property damage" resulting from the movement of property by a mechanical device (other than a hand truck) unless the device is attached to the covered "auto".

9. Operations

"Bodily injury" or "property damage" arising out of the operation of:

- a. Any equipment listed in Paragraphs **6.b.** and **6.c.** of the definition of "mobile equipment"; or
- b. Machinery or equipment that is on, attached to, or part of, a land vehicle that would qualify under the definition of "mobile equipment" if it were not subject to a compulsory or financial responsibility law or other motor vehicle insurance law where it is licensed or principally garaged.

10. Completed Operations

"Bodily injury" or "property damage" arising out of your work after that work has been completed or abandoned.

In this exclusion, your work means:

- a. Work or operations performed by you or on your behalf; and
- b. Materials, parts or equipment furnished in connection with such work or operations.

Your work includes warranties or representations made at any time with respect to the fitness, quality, durability or performance of any of the items included in Paragraph **a.** or **b.** above.

Your work will be deemed completed at the earliest of the following times:

- (1) When all of the work called for in your contract has been completed.
- (2) When all of the work to be done at the site has been completed if your contract calls for work at more than one site.
- (3) When that part of the work done at a job site has been put to its intended use by any person or organization other than another contractor or subcontractor working on the same project.

Work that may need service, maintenance, correction, repair or replacement, but which is otherwise complete, will be treated as completed.

11. Pollution

"Bodily injury" or "property damage" arising out of the actual, alleged or threatened discharge, dispersal, seepage, migration, release or escape of "pollutants":

- a. That are, or that are contained in any property that is:

- (1) Being transported or towed by, handled, or handled for movement into, onto or from, the covered "auto";

(2) Otherwise in the course of transit by or on behalf of the "insured"; or

(3) Being stored, disposed of, treated or processed in or upon the covered "auto";

b. Before the "pollutants" or any property in which the "pollutants" are contained are moved from the place where they are accepted by the "insured" for movement into or onto the covered "auto"; or

c. After the "pollutants" or any property in which the "pollutants" are contained are moved from the covered "auto" to the place where they are finally delivered, disposed of or abandoned by the "insured".

Paragraph a. above does not apply to fuels, lubricants, fluids, exhaust gases or other similar "pollutants" that are needed for or result from the normal electrical, hydraulic or mechanical functioning of the covered "auto" or its parts, if:

(1) The "pollutants" escape, seep, migrate, or are discharged, dispersed or released directly from an "auto" part designed by its manufacturer to hold, store, receive or dispose of such "pollutants"; and

(2) The "bodily injury", "property damage" or "covered pollution cost or expense" does not arise out of the operation of any equipment listed in Paragraphs 6.b. and 6.c. of the definition of "mobile equipment".

Paragraphs b. and c. above of this exclusion do not apply to "accidents" that occur away from premises owned by or rented to an "insured" with respect to "pollutants" not in or upon a covered "auto" if:

(1) The "pollutants" or any property in which the "pollutants" are contained are upset, overturned or damaged as a result of the maintenance or use of a covered "auto"; and

(2) The discharge, dispersal, seepage, migration, release or escape of the "pollutants" is caused directly by such upset, overturn or damage.

12. War

"Bodily injury" or "property damage" arising directly or indirectly out of:

a. War, including undeclared or civil war;

b. Warlike action by a military force, including action in hindering or defending against an actual or expected attack, by any government, sovereign or other authority using military personnel or other agents; or

c. Insurrection, rebellion, revolution, usurped power, or action taken by governmental authority in hindering or defending against any of these.

13. Racing

Covered "autos" while used in any professional or organized racing or demolition contest or stunting activity, or while practicing for such contest or activity. This insurance also does not apply while that covered "auto" is being prepared for such a contest or activity.

C. Limit Of Insurance

Regardless of the number of covered "autos", "insureds", premiums paid, claims made or vehicles involved in the "accident", the most we will pay for the total of all damages and "covered pollution cost or expense" combined, resulting from any one "accident" is the Limit of Insurance for Liability Coverage shown in the Declarations.

All "bodily injury", "property damage" and "covered pollution cost or expense" resulting from continuous or repeated exposure to substantially the same conditions will be considered as resulting from one "accident".

No one will be entitled to receive duplicate payments for the same elements of "loss" under this Coverage Form and any Medical Payments Coverage Endorsement, Uninsured Motorists Coverage Endorsement or Underinsured Motorists Coverage Endorsement attached to this Coverage Part.

SECTION III – PHYSICAL DAMAGE COVERAGE

A. Coverage

1. We will pay for "loss" to a covered "auto" or its equipment under:

a. Comprehensive Coverage

From any cause except:

(1) The covered "auto's" collision with another object; or

(2) The covered "auto's" overturn.

b. Specified Causes Of Loss Coverage

Caused by:

(1) Fire, lightning or explosion;

(2) Theft;

(3) Windstorm, hail or earthquake;

(4) Flood;

(5) Mischief or vandalism; or

(6) The sinking, burning, collision or derailment of any conveyance transporting the covered "auto".

c. Collision Coverage

Caused by:

- (1) The covered "auto's" collision with another object; or
- (2) The covered "auto's" overturn.

2. Towing

We will pay up to the limit shown in the Declarations for towing and labor costs incurred each time a covered "auto" of the private passenger type is disabled. However, the labor must be performed at the place of disablement.

3. Glass Breakage – Hitting A Bird Or Animal – Falling Objects Or Missiles

If you carry Comprehensive Coverage for the damaged covered "auto", we will pay for the following under Comprehensive Coverage:

- a. Glass breakage;
- b. "Loss" caused by hitting a bird or animal; and
- c. "Loss" caused by falling objects or missiles.

However, you have the option of having glass breakage caused by a covered "auto's" collision or overturn considered a "loss" under Collision Coverage.

4. Coverage Extensions

a. Transportation Expenses

We will pay up to \$20 per day to a maximum of \$600 for temporary transportation expense incurred by you because of the total theft of a covered "auto" of the private passenger type. We will pay only for those covered "autos" for which you carry either Comprehensive or Specified Causes of Loss Coverage. We will pay for temporary transportation expenses incurred during the period beginning 48 hours after the theft and ending, regardless of the policy's expiration, when the covered "auto" is returned to use or we pay for its "loss".

b. Loss Of Use Expenses

For Hired Auto Physical Damage, we will pay expenses for which an "insured" becomes legally responsible to pay for loss of use of a vehicle rented or hired without a driver, under a written rental contract or agreement. We will pay for loss of use expenses if caused by:

- (1) Other than collision only if the Declarations indicate that Comprehensive Coverage is provided for any covered "auto";

(2) Specified Causes Of Loss only if the Declarations indicate that Specified Causes Of Loss Coverage is provided for any covered "auto"; or

(3) Collision only if the Declarations indicate that Collision Coverage is provided for any covered "auto".

However, the most we will pay for any expenses for loss of use is \$20 per day, to a maximum of \$600.

B. Exclusions

1. We will not pay for "loss" caused by or resulting from any of the following. Such "loss" is excluded regardless of any other cause or event that contributes concurrently or in any sequence to the "loss".

a. Nuclear Hazard

- (1) The explosion of any weapon employing atomic fission or fusion; or
- (2) Nuclear reaction or radiation, or radioactive contamination, however caused.

b. War Or Military Action

- (1) War, including undeclared or civil war;
- (2) Warlike action by a military force, including action in hindering or defending against an actual or expected attack, by any government, sovereign or other authority using military personnel or other agents; or
- (3) Insurrection, rebellion, revolution, usurped power or action taken by governmental authority in hindering or defending against any of these.

2. We will not pay for "loss" to any covered "auto" while used in any professional or organized racing or demolition contest or stunting activity, or while practicing for such contest or activity. We will also not pay for "loss" to any covered "auto" while that covered "auto" is being prepared for such a contest or activity.

3. We will not pay for "loss" caused by or resulting from any of the following unless caused by other "loss" that is covered by this insurance:

- a. Wear and tear, freezing, mechanical or electrical breakdown.
- b. Blowouts, punctures or other road damage to tires.

4. We will not pay for "loss" to any of the following:

- a. Tapes, records, discs or other similar audio, visual or data electronic devices designed for use with audio, visual or data electronic equipment.

- b. Any device designed or used to detect speed measuring equipment such as radar or laser detectors and any jamming apparatus intended to elude or disrupt speed measurement equipment.
- c. Any electronic equipment, without regard to whether this equipment is permanently installed, that receives or transmits audio, visual or data signals and that is not designed solely for the reproduction of sound.
- d. Any accessories used with the electronic equipment described in Paragraph c. above.

Exclusions 4.c. and 4.d. do not apply to:

- a. Equipment designed solely for the reproduction of sound and accessories used with such equipment, provided such equipment is permanently installed in the covered "auto" at the time of the "loss" or such equipment is removable from a housing unit which is permanently installed in the covered "auto" at the time of the "loss", and such equipment is designed to be solely operated by use of the power from the "auto's" electrical system, in or upon the covered "auto"; or
- b. Any other electronic equipment that is:
 - (1) Necessary for the normal operation of the covered "auto" or the monitoring of the covered "auto's" operating system; or
 - (2) An integral part of the same unit housing any sound reproducing equipment described in Paragraph a. above and permanently installed in the opening of the dash or console of the covered "auto" normally used by the manufacturer for installation of a radio.

- 5. We will not pay for "loss" to a covered "auto" due to "diminution in value".

C. Limit Of Insurance

- 1. The most we will pay for "loss" in any one "accident" is the lesser of:
 - a. The actual cash value of the damaged or stolen property as of the time of the "loss"; or
 - b. The cost of repairing or replacing the damaged or stolen property with other property of like kind and quality.
- 2. An adjustment for depreciation and physical condition will be made in determining actual cash value in the event of a total "loss".

- 3. If a repair or replacement results in better than like kind or quality, we will not pay for the amount of the betterment.

D. Deductible

For each covered "auto", our obligation to pay for, repair, return or replace damaged or stolen property will be reduced by the applicable deductible shown in the Declarations. Any Comprehensive Coverage deductible shown in the Declarations does not apply to "loss" caused by fire or lightning.

SECTION IV – BUSINESS AUTO CONDITIONS

The following conditions apply in addition to the Common Policy Conditions:

A. Loss Conditions

1. Appraisal For Physical Damage Loss

If you and we disagree on the amount of "loss", either may demand an appraisal of the "loss". In this event, each party will select a competent appraiser. The two appraisers will select a competent and impartial umpire. The appraisers will state separately the actual cash value and amount of "loss". If they fail to agree, they will submit their differences to the umpire. A decision agreed to by any two will be binding. Each party will:

- a. Pay its chosen appraiser; and
- b. Bear the other expenses of the appraisal and umpire equally.

If we submit to an appraisal, we will still retain our right to deny the claim.

2. Duties In The Event Of Accident, Claim, Suit Or Loss

We have no duty to provide coverage under this policy unless there has been full compliance with the following duties:

- a. In the event of "accident", claim, "suit" or "loss", you must give us or our authorized representative prompt notice of the "accident" or "loss". Include:
 - (1) How, when and where the "accident" or "loss" occurred;
 - (2) The "insured's" name and address; and
 - (3) To the extent possible, the names and addresses of any injured persons and witnesses.
- b. Additionally, you and any other involved "insured" must:
 - (1) Assume no obligation, make no payment or incur no expense without our consent, except at the "insured's" own cost.

- (2) Immediately send us copies of any request, demand, order, notice, summons or legal paper received concerning the claim or "suit".
 - (3) Cooperate with us in the investigation or settlement of the claim or defense against the "suit".
 - (4) Authorize us to obtain medical records or other pertinent information.
 - (5) Submit to examination, at our expense, by physicians of our choice, as often as we reasonably require.
- c. If there is "loss" to a covered "auto" or its equipment you must also do the following:
- (1) Promptly notify the police if the covered "auto" or any of its equipment is stolen.
 - (2) Take all reasonable steps to protect the covered "auto" from further damage. Also keep a record of your expenses for consideration in the settlement of the claim.
 - (3) Permit us to inspect the covered "auto" and records proving the "loss" before its repair or disposition.
 - (4) Agree to examinations under oath at our request and give us a signed statement of your answers.

3. Legal Action Against Us

No one may bring a legal action against us under this Coverage Form until:

- a. There has been full compliance with all the terms of this Coverage Form; and
- b. Under Liability Coverage, we agree in writing that the "insured" has an obligation to pay or until the amount of that obligation has finally been determined by judgment after trial. No one has the right under this policy to bring us into an action to determine the "insured's" liability.

4. Loss Payment – Physical Damage Coverages

At our option we may:

- a. Pay for, repair or replace damaged or stolen property;
- b. Return the stolen property, at our expense. We will pay for any damage that results to the "auto" from the theft; or

- c. Take all or any part of the damaged or stolen property at an agreed or appraised value.

If we pay for the "loss", our payment will include the applicable sales tax for the damaged or stolen property.

5. Transfer Of Rights Of Recovery Against Others To Us

If any person or organization to or for whom we make payment under this Coverage Form has rights to recover damages from another, those rights are transferred to us. That person or organization must do everything necessary to secure our rights and must do nothing after "accident" or "loss" to impair them.

B. General Conditions

1. Bankruptcy

Bankruptcy or insolvency of the "insured" or the "insured's" estate will not relieve us of any obligations under this Coverage Form.

2. Concealment, Misrepresentation Or Fraud

This Coverage Form is void in any case of fraud by you at any time as it relates to this Coverage Form. It is also void if you or any other "insured", at any time, intentionally conceal or misrepresent a material fact concerning:

- a. This Coverage Form;
- b. The covered "auto";
- c. Your interest in the covered "auto"; or
- d. A claim under this Coverage Form.

3. Liberalization

If we revise this Coverage Form to provide more coverage without additional premium charge, your policy will automatically provide the additional coverage as of the day the revision is effective in your state.

4. No Benefit To Bailee – Physical Damage Coverages

We will not recognize any assignment or grant any coverage for the benefit of any person or organization holding, storing or transporting property for a fee regardless of any other provision of this Coverage Form.

5. Other Insurance

- a. For any covered "auto" you own, this Coverage Form provides primary insurance. For any covered "auto" you don't own, the insurance provided by this Coverage Form is excess over any other collectible insurance. However, while a covered "auto" which is a "trailer" is connected to another vehicle, the Liability Coverage this Coverage Form provides for the "trailer" is:
 - (1) Excess while it is connected to a motor vehicle you do not own.
 - (2) Primary while it is connected to a covered "auto" you own.
- b. For Hired Auto Physical Damage Coverage, any covered "auto" you lease, hire, rent or borrow is deemed to be a covered "auto" you own. However, any "auto" that is leased, hired, rented or borrowed with a driver is not a covered "auto".
- c. Regardless of the provisions of Paragraph a. above, this Coverage Form's Liability Coverage is primary for any liability assumed under an "insured contract".
- d. When this Coverage Form and any other Coverage Form or policy covers on the same basis, either excess or primary, we will pay only our share. Our share is the proportion that the Limit of Insurance of our Coverage Form bears to the total of the limits of all the Coverage Forms and policies covering on the same basis.

6. Premium Audit

- a. The estimated premium for this Coverage Form is based on the exposures you told us you would have when this policy began. We will compute the final premium due when we determine your actual exposures. The estimated total premium will be credited against the final premium due. The Named Insured balance, if any. The final premium or retrospective premium is the date shown as the due date on the bill. If the estimated total premium exceeds the final premium due, the first Named Insured will get a refund.
- b. If this policy is issued for more than one year, the premium for this Coverage Form will be computed annually based on our rates or premiums in effect at the beginning of each year of the policy.

7. Policy Period, Coverage Territory

Under this Coverage Form, we cover "accidents" and "losses" occurring:

- a. During the policy period shown in the Declarations; and

- b. Within the coverage territory.

The coverage territory is:

- a. The United States of America;
- b. The territories and possessions of the United States of America;
- c. Puerto Rico;
- d. Canada; and
- e. Anywhere in the world if:

- (1) A covered "auto" of the private passenger type is leased, hired, rented or borrowed without a driver for a period of 30 days or less; and

- (2) The "insured's" responsibility to pay damages is determined in a "suit" on the merits, in the United States of America, the territories and possessions of the United States of America, Puerto Rico, or Canada or in a settlement we agree to.

We also cover "loss" to, or "accidents" involving, a covered "auto" while being transported between any of these places.

8. Two Or More Coverage Forms Or Policies Issued By Us

If this Coverage Form and any other Coverage Form or policy issued to you by us or any company affiliated with us apply to the same "accident", the aggregate maximum Limit of Insurance under all the Coverage Forms or policies shall not exceed the highest applicable Limit of Insurance under any one Coverage Form or policy. This condition does not apply to any Coverage Form or policy issued by us or an affiliated company specifically to apply as excess insurance over this Coverage Form.

SECTION V – DEFINITIONS

- A. "Accident" includes continuous or repeated exposure to the same conditions resulting in "bodily injury" or "property damage".
- B. "Auto" means:
 1. A land motor vehicle, "trailer" or semitrailer designed for travel on public roads; or

2. Any other land vehicle that is subject to a compulsory or financial responsibility law or other motor vehicle insurance law where it is licensed or principally garaged.

However, "auto" does not include "mobile equipment".

- C. "Bodily injury" means bodily injury, sickness or disease sustained by a person including death resulting from any of these.
- D. "Covered pollution cost or expense" means any cost or expense arising out of:
1. Any request, demand, order or statutory or regulatory requirement that any "insured" or others test for, monitor, clean up, remove, contain, treat, detoxify or neutralize, or in any way respond to, or assess the effects of "pollutants"; or
 2. Any claim or "suit" by or on behalf of a governmental authority for damages because of testing for, monitoring, cleaning up, removing, containing, treating, detoxifying or neutralizing, or in any way responding to or assessing the effects of "pollutants".

"Covered pollution cost or expense" does not include any cost or expense arising out of the actual, alleged or threatened discharge, dispersal, seepage, migration, release or escape of "pollutants":

- a. That are, or that are contained in any property that is:
 - (1) Being transported or towed by, handled, or handled for movement into, onto or from the covered "auto";
 - (2) Otherwise in the course of transit by or on behalf of the "insured";
 - (3) Being stored, disposed of, treated or processed in or upon the covered "auto";
- b. Before the "pollutants" or any property in which the "pollutants" are contained are moved from the place where they are accepted by the "insured" for movement into or onto the covered "auto"; or
- c. After the "pollutants" or any property in which the "pollutants" are contained are moved from the covered "auto" to the place where they are finally delivered, disposed of or abandoned by the "insured".

Paragraph **a.** above does not apply to fuels, lubricants, fluids, exhaust gases or other similar "pollutants" that are needed for or result from the normal electrical, hydraulic or mechanical functioning of the covered "auto" or its parts, if:

- (1) The "pollutants" escape, seep, migrate, or are discharged, dispersed or released directly from an "auto" part designed by its manufacturer to hold, store, receive or dispose of such "pollutants"; and
- (2) The "bodily injury", "property damage" or "covered pollution cost or expense" does not arise out of the operation of any equipment listed in Paragraph **6.b.** or **6.c.** of the definition of "mobile equipment".

Paragraphs **b.** and **c.** above do not apply to "accidents" that occur away from premises owned by or rented to an "insured" with respect to "pollutants" not in or upon a covered "auto" if:

- (1) The "pollutants" or any property in which the "pollutants" are contained are upset, overturned or damaged as a result of the maintenance or use of a covered "auto"; and
- (2) The discharge, dispersal, seepage, migration, release or escape of the "pollutants" is caused directly by such upset, overturn or damage.

- E. "Diminution in value" means the actual or perceived loss in market value or resale value which results from a direct and accidental "loss".
- F. "Employee" includes a "leased worker". "Employee" does not include a "temporary worker".
- G. "Insured" means any person or organization qualifying as an insured in the Who Is An Insured provision of the applicable coverage. Except with respect to the Limit of Insurance, the coverage afforded applies separately to each insured who is seeking coverage or against whom a claim or "suit" is brought.
- H. "Insured contract" means:
1. A lease of premises;
 2. A sidetrack agreement;
 3. Any easement or license agreement, except in connection with construction or demolition operations on or within 50 feet of a railroad;

4. An obligation, as required by ordinance, to indemnify a municipality, except in connection with work for a municipality;
5. That part of any other contract or agreement pertaining to your business (including an indemnification of a municipality in connection with work performed for a municipality) under which you assume the tort liability of another to pay for "bodily injury" or "property damage" to a third party or organization. Tort liability means a liability that would be imposed by law in the absence of any contract or agreement;
6. That part of any contract or agreement entered into, as part of your business, pertaining to the rental or lease, by you or any of your "employees", of any "auto". However, such contract or agreement shall not be considered an "insured contract" to the extent that it obligates you or any of your "employees" to pay for "property damage" to any "auto" rented or leased by you or any of your "employees".

An "insured contract" does not include that part of any contract or agreement:

- a. That indemnifies a railroad for "bodily injury" or "property damage" arising out of construction or demolition operations, within 50 feet of any railroad property and affecting any railroad bridge or trestle, tracks, roadbeds, tunnel, underpass or crossing; or
- b. That pertains to the loan, lease or rental of an "auto" to you or any of your "employees", if the "auto" is loaned, leased or rented with a driver; or
- c. That holds a person or organization engaged in the business of transporting property by "auto" for hire harmless for your use of a covered "auto" over a route or territory that person or organization is authorized to serve by public authority.

I. "Leased worker" means a person leased to you by a labor leasing firm under an agreement between you and the labor leasing firm, to perform duties related to the conduct of your business. "Leased worker" does not include a "temporary worker".

J. "Loss" means direct and accidental loss or damage.

K. "Mobile equipment" means any of the following types of land vehicles, including any attached machinery or equipment:

1. Bulldozers, farm machinery, forklifts and other vehicles designed for use principally off public roads;
2. Vehicles maintained for use solely on or next to premises you own or rent;

3. Vehicles that travel on crawler treads;

4. Vehicles, whether self-propelled or not, maintained primarily to provide mobility to permanently mounted:

- a. Power cranes, shovels, loaders, diggers or drills; or
- b. Road construction or resurfacing equipment such as graders, scrapers or rollers.

5. Vehicles not described in Paragraph 1., 2., 3., or 4. above that are not self-propelled and are maintained primarily to provide mobility to permanently attached equipment of the following types:

- a. Air compressors, pumps and generators, including spraying, welding, building cleaning, geophysical exploration, lighting and well servicing equipment; or
- b. Cherry pickers and similar devices used to raise or lower workers.

6. Vehicles not described in Paragraph 1., 2., 3. or 4. above maintained primarily for purposes other than the transportation of persons or cargo. However, self-propelled vehicles with the following types of permanently attached equipment are not "mobile equipment" but will be considered "autos":

a. Equipment designed primarily for:

- (1) Snow removal;
- (2) Road maintenance, but not construction or resurfacing; or
- (3) Street cleaning;

b. Cherry pickers and similar devices mounted on automobile or truck chassis and used to raise or lower workers; and

c. Air compressors, pumps and generators, including spraying, welding, building cleaning, geophysical exploration, lighting or well servicing equipment.

However, "mobile equipment" does not include land vehicles that are subject to a compulsory or financial responsibility law or other motor vehicle insurance law where it is licensed or principally garaged. Land vehicles subject to a compulsory or financial responsibility law or other motor vehicle insurance law are considered "autos".

L. "Pollutants" means any solid, liquid, gaseous or thermal irritant or contaminant, including smoke, vapor, soot, fumes, acids, alkalis, chemicals and waste. Waste includes materials to be recycled, reconditioned or reclaimed.

M. "Property damage" means damage to or loss of use of tangible property.

N. "Suit" means a civil proceeding in which:

- 1.** Damages because of "bodily injury" or "property damage"; or
- 2.** A "covered pollution cost or expense",

to which this insurance applies, are alleged.

"Suit" includes:

- a.** An arbitration proceeding in which such damages or "covered pollution costs or expenses" are claimed and to which the "insured" must submit or does submit with our consent; or

- b.** Any other alternative dispute resolution proceeding in which such damages or "covered pollution costs or expenses" are claimed and to which the insured submits with our consent.

O. "Temporary worker" means a person who is furnished to you to substitute for a permanent "employee" on leave or to meet seasonal or short-term workload conditions.

P. "Trailer" includes semitrailer.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

NEW YORK CHANGES – CANCELLATION

For a covered "auto" licensed or principally garaged in, or for "garage operations" conducted in, New York, this endorsement modifies insurance provided under the following:

BUSINESS AUTO COVERAGE FORM
 BUSINESS AUTO PHYSICAL DAMAGE COVERAGE FORM
 GARAGE COVERAGE FORM
 MOTOR CARRIER COVERAGE FORM
 TRUCKERS COVERAGE FORM

With respect to coverage provided by this endorsement, the provisions of the Coverage Form apply unless modified by the endorsement.

- I. If you are an individual and a covered "auto" you own is predominantly used for nonbusiness purposes, the **Cancellation** Common Policy Condition does not apply. The following condition applies instead:

Ending This Policy

A. Cancellation

1. You may cancel the entire Policy by returning it to us or by giving us advance notice of the date cancellation is to take effect.
2. When this Policy is in effect less than 60 days and is not a renewal or continuation policy, we may cancel the entire Policy for any reason provided we mail you notice within this period. If we cancel for nonpayment of premium, we will mail you at least 15 days' notice and such notice of cancellation on this gr
 first Named Insured
 Payment of premium
 time if made within 15 days after we mail you notice of cancellation. If we cancel for any other reason, we will mail you at least 20 days' notice.

3. When this Policy is in effect 60 days or more or is a renewal or continuation policy, we may cancel it or any insurance deemed severable only for one or more of the following reasons:

- a. Nonpayment of premium, provided, however, that a notice of cancellation on this gro
 Insured FAIRMOUNT CONTRACTING
 for this
 15 days' notice. Payment of premium will be considered on time if made within 15 days after we mail you notice of cancellation.
- b. Your driver's license or that of a driver who lives with you or customarily uses the covered "auto" has been suspended or revoked during the policy period, other than a suspension issued pursuant to Subdivision (1) of Section 510(b) of the New York Vehicle and Traffic Law, or one or more administrative suspensions arising out of the same incident which has or have been terminated prior to the effective date of cancellation. If we cancel for this reason, we will mail you at least 20 days' notice.

- c. We replace this Policy with another one providing similar coverages and the same limits for a covered "auto" of the private passenger type. The replacement policy will take effect when this Policy is cancelled, and will end a year after this Policy begins or on this Policy's expiration date, whichever is earlier.
- d. This Policy has been written for a period of more than one year or without a fixed expiration date. We may cancel for this reason, subject to New York Laws, only at an anniversary of its original effective date. If we cancel for this reason, we will mail you at least 45 but not more than 60 days' notice.
- e. This Policy was obtained through fraud or material misrepresentation. If we cancel for this reason, we will mail you at least 20 days' notice.
- f. Any "insured" made a fraudulent claim. If we cancel for this reason, we will mail you at least 20 days' notice.

If one of the reasons listed in this Paragraph 3. exists, we may cancel the entire Policy.

- 4. Instead of cancellation, we may condition continuation of this Policy on a reduction of Liability Coverage or elimination of any other coverage. If we do this, we will mail you notice at least 20 days before the date of the change.
- 5. Notice of cancellation will state the effective date of cancellation. The policy period will end on that date.
- 6. If this Policy is cancelled, we will send you any premium refund due. The refund will be pro rata.

However, when the premium is advanced under a premium finance agreement, we will be entitled to retain a minimum earned premium of 10% of the total policy premium or \$60, whichever is greater. The cancellation will be effective even if we have not made or offered a refund.

B. Nonrenewal

- 1. If this Policy is written for a period of less than one year and we decide, subject to New York Laws, not to renew or continue it, or to condition renewal or continuation on a reduction of Liability Coverage or elimination of any ill mail or deliver
to you RIDGEWAY SERVICE GROUP 45 but not more
than 6 nd of the policy
period.
- 2. We will have the right not to renew or continue a particular coverage, subject to New York Laws, only at the end of each 12-month period following the effective date of the first of the successive policy periods in which the coverage was provided.
- 3. We do not have to mail notice of nonrenewal
t or broker or another
Granite Row informs us in writing that
this Policy or that you no
longer want it.

C. Mailing Of Notices

We will mail or deliver our notice of cancellation, reduction of limits, elimination of coverage or nonrenewal to the address shown on the Policy. However, we may deliver any notice instead of mailing it. If notice is mailed, a United States Postal Service certificate of mailing will be sufficient proof of notice.

- II. For all policies other than those specified in Section I., the **Cancellation** Common Policy Condition is completely replaced by the following:

Ending This Policy

A. Cancellation

- 1. The first Named Insured shown in the Declarations may cancel the entire Policy by returning it to us or by giving us advance notice of the date cancellation is to take effect.
- 2. When this Policy is in effect 60 days or less and is not a renewal or continuation policy, we may cancel the entire
first Named Insured TALLGRASS INDUSTRIES
days before the
cancellation if we cancel for any of the reasons included in Paragraph 3. below. We will provide the first Named Insured with 20 days' written notice if we cancel for any other reason.

3. When this Policy is in effect more than 60 days or is a renewal or continuation policy, we may cancel only for any of the reasons listed below, prior to the 60th day after the Named Insured's last payment of premium:
 - a. Nonpayment of premium, provided, however, that a notice of cancellation on this ground is given to the first Named Insured HARBOR POINT within 30 days of the due date of the premium;
 - b. Conviction of a crime arising out of acts increasing the hazard insured against;
 - c. Discovery of fraud or material misrepresentation in the obtaining of the Policy or in the presentation of a claim thereunder;
 - d. After issuance of the Policy or after the last renewal date, discovery of an act or omission, or a violation of any policy condition, that substantially and materially increases the hazard insured against, and which occurred subsequent to inception of the current policy period;
 - e. Material change in the risk insured against, which results in the property becoming uninsurable in accordance with our objective, uniformly applied underwriting standards in effect at the time the Policy was issued or last renewed; or material change in the risk insured against, which causes the risk of loss to be substantially and materially increased beyond that contemplated at the time the Policy was issued or last renewed;
 - f. Required pursuant to a determination by the Superintendent that continuation of our present premium volume would jeopardize our solvency or be hazardous to the interest of our policyholders, our creditors or the public;
 - g. A determination by the Superintendent that the continuation of the Policy would violate, or would place us in violation of, any provision of the Insurance Code;
 - h. Where we have reason to believe, in good faith and with sufficient cause, that there is a probable risk of danger that the "insured" will destroy, or permit to be destroyed, the insured property for the purpose of collecting the insurance proceeds. However, if we cancel for this reason, the first Named Insured may make a written request to the Department of Financial Services, within 10 days of receipt of this notice, to review our cancellation decision. We will also send a copy of this notice, simultaneously, to the Department of Financial Services; or
 - i. Suspension or revocation during the required policy period of the driver's license of any person who continues to operate a covered "auto", other than a suspension issued pursuant to Subdivision (1) of Section 510(b) of the New York Vehicle and Traffic Law or one or more administrative suspensions arising from the same incident which has or have been terminated prior to the effective date of cancellation.
4. Regardless of the number of days this Policy has been in effect, if:
 - a. This Policy covers "autos" subject to the provisions of Section 370 of the New York Vehicle and Traffic Law; and
 - b. The Commissioner of the Department of Motor Vehicles deems this Policy to be insufficient for any reason;
 we may cancel this Policy by giving you notice of such insufficiency 45 days before the effective date of cancellation to permit you to replace this Policy.
5. If this Policy is cancelled by the first Named Insured CEDARLINE SERVICE GROUP, The refund will be pro-rated. However, when the premium is advanced under a premium finance agreement, we will be entitled to retain a minimum earned premium of 10% of the total policy premium or \$60, whichever is greater. The cancellation will be effective even if we have not made or offered a refund.

6. The effective date of cancellation stated in the notice shall become the end of the policy period.
7. Notice will include the reason for cancellation. We will mail or
 d Insured IRONVALE ENTERPRISES
 and to th
 er, we may deliver any notice instead of mailing it. Proof of mailing will be sufficient proof of notice.

B. Notices Of Nonrenewal And Conditional Renewal

1. If we decide not to renew or continue this Policy, we will send notice as provided in Paragraph 3. below.
2. If we conditionally renew this Policy upon:
 - a. A change of limits;
 - b. A change in type of coverage;
 - c. A reduction of coverage;
 - d. An increased deductible;
 - e. An addition of exclusion; or
 - f. Increased premiums in excess of 10%, exclusive of any premium increase due to and commensurate with insured value added; or as a result of experience rating, retrospective rating or audit;
 we will send notice as provided in Paragraph 3. below.
3. If we decide not to renew or continue this Policy, or to conditionally renew this Policy as provided in Paragraphs 1. and 2. above, we will mail the first Named Insured notice at least 60 but not more than 120 days before the end of the policy period. If the policy period is other than one year, we will have the right not to renew or continue it only at an anniversary of its original effective date.
4. We will not send you notice of nonrenewal or conditional renewal if you, your authorized agent or broker or another insurer of yours mails or delivers notice that you have replaced this Policy or no longer want it.

5. Any notice of nonrenewal or conditional renewal
 Insured
 and to
 However, we may deliver any notice instead of mailing it. Proof of mailing of any notice shall be sufficient proof of notice.

6. Notice will include the specific reason(s) for nonrenewal or conditional renewal, including the amount of any premium increase, and description of any other changes.

7. If we violate any of the provisions of Paragraph 3., 5. or 6.
 first Named Insured
 conditional renewal
 nonrenewal notice:

ASHCROFT LOGISTICS

- a. And if notice is provided prior to the expiration date of this Policy, coverage will remain in effect at the same terms and conditions of this Policy at the lower of the current rates or the prior period's rates until 60 days after such notice is mailed or de
 Named Insured
 has replaced t
 cancel.

- b. And if the notice is provided on or after the expiration date of this Policy, coverage will remain in effect at the same terms and conditions of this Policy for another policy period, at the lower of the current rates or the prior period unless the first Named Insured
 this additional policy period, has
 the coverage or elects to cancel.

VANTAGE

8. If you elect to renew on the basis of a late conditional renewal notice, the terms, conditions and rates set forth in such notice shall apply:
 - a. Upon expiration of the 60-day period, unless Subparagraph b. below applies; or
 - b. Notwithstanding the provisions in Paragraphs 7.a. and 7.b., as of the renewal date of the Policy if the conditional renewal notice was sent at least 30 days prior to the expiration or anniversary date of the Policy.

C. Paragraph C.1. Aggregate Limit Of Insurance – Garage Operations – Other Than Covered “Autos” is amended as follows:

1. The Aggregate Limit Of Insurance – “Garage Operations” – Other Than Covered “Autos” as shown in the Declarations will be increased in proportion to any policy extension provided in accordance with Section II, Paragraph **B.7.** above.
2. The last sentence of Aggregate Limits – “Garage Operations” – Other Than Covered “Autos” does not apply when the policy period is extended because we sent the first Named Insured an incomplete or late conditional renewal notice or a late nonrenewal notice.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

NEW YORK CHANGES – TRAILER COVERAGE

This endorsement modifies insurance provided under the following:

GARAGE COVERAGE FORM
BUSINESS AUTO COVERAGE FORM

With respect to coverage provided by this endorsement, the provisions of the Coverage Form apply unless modified by the endorsement.

A. The Certain Trailers, Mobile Equipment And Temporary Substitute Autos Provision in the Business Auto Coverage Form is replaced with the following:

If Liability Coverage is provided by this Coverage Form, the following types of vehicles are also covered "autos" for Liability Coverage:

1. "Trailers" with a load capacity of 3,000 pounds or less designed primarily for travel on public roads.
2. "Mobile equipment" while being carried or towed by a covered "auto".
3. Any "auto" you do not own while used with the permission of its owner as a temporary substitute for a covered "auto" you own that is out of service because of its:
 - a. Breakdown;
 - b. Repair;
 - c. Servicing;
 - d. "Loss"; or
 - e. Destruction.

B. The Certain Trailers And Temporary Substitute Autos Provision in the Garage Coverage Form is replaced with the following:

If Liability Coverage is provided by this Coverage Form, the following types of vehicles are also covered "autos" for Liability Coverage:

1. "Trailers" with a load capacity of 3,000 pounds or less designed primarily for travel on public roads.
2. Any "auto" you do not own while used with the permission of its owner as a temporary substitute for a covered "auto" you own that is out of service because of its:
 - a. Breakdown;
 - b. Repair;
 - c. Servicing;
 - d. "Loss"; or
 - e. Destruction.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

NEW YORK CHANGES IN BUSINESS AUTO, BUSINESS AUTO PHYSICAL DAMAGE, MOTOR CARRIER AND TRUCKERS COVERAGE FORMS

For a covered "auto" licensed or principally garaged in New York, this endorsement modifies insurance provided under the following:

BUSINESS AUTO COVERAGE FORM
BUSINESS AUTO PHYSICAL DAMAGE COVERAGE FORM
MOTOR CARRIER COVERAGE FORM
TRUCKERS COVERAGE FORM

With respect to coverage provided by this endorsement, the provisions of the Coverage Form apply unless modified by the endorsement.

A. Changes In Liability Coverage

1. The third paragraph of **A. Coverage** is replaced by the following:

We have the right and duty to defend any "insured" against a "suit" asking for such damages or a "covered pollution cost or expense", even if the allegations of the "suit" are groundless, false or fraudulent. However, we have no duty to defend any "insured" against a "suit" seeking damages for "bodily injury" or "property damage" or a "covered pollution cost or expense" to which this insurance does not apply. We may investigate and settle any claim or "suit" as we consider appropriate. Our duty to defend or settle ends when the Liability Coverage Limit of Insurance has been exhausted by payment of judgments or settlements.

2. Who Is An Insured does not include anyone loading or unloading a covered "auto" except you, your "employees", a lessee or borrower or any of their "employees".

3. **Supplementary Payments** is amended as follows:

- a. Paragraph **(5)** is replaced by the following:

(5) All costs taxed against the "insured" in any "suit" against the "insured" we defend.

- b. The following paragraphs are added:

(7) All expenses incurred by an "insured" for first aid to others at the time of an "accident".

- (8)** The cost of appeal bonds.

4. Paragraph **b. Out-of-state Coverage Extensions** in the Business Auto, Motor Carrier and Truckers Coverage Forms is replaced by the following:

b. Out-of-state Coverage Extensions

While a covered "auto" is used or operated in any other state or Canadian province, we will provide at least the minimum amount and kind of coverage which is required in such cases under the laws of such jurisdiction.

5. **Exclusions** is changed as follows:

- a. The **Employee Indemnification And Employer's Liability** Exclusion is replaced by the following:

Employee Indemnification And Employer's Liability

This insurance does not apply to:

"Bodily injury" to an "employee" of the "insured" arising out of and in the course of:

- (1)** Employment by the "insured"; or
- (2)** Performing the duties related to the conduct of the "insured's" business.

But this exclusion does not apply to "bodily injury" to domestic "employees" not entitled to workers' compensation benefits or to liability assumed by the "insured" under an "insured contract". For the purposes of the Coverage Form, a domestic "employee" is a person engaged in household or domestic work performed principally in connection with a residence premises.

- b. The **Fellow Employee** Exclusion is replaced by the following:

Fellow Employee

This insurance does not apply to:

"Bodily injury" to any fellow "employee" of the "insured" arising out of and in the course of the fellow "employee's" employment or while performing duties related to the conduct of your business.

However, this exclusion only applies if the fellow "employee" is entitled to benefits under any of the following: workers' compensation, unemployment compensation or disability benefits law, or any similar law.

- c. The **Handling Of Property** Exclusion does not apply.
- d. The **Movement Of Property By Mechanical Device** Exclusion does not apply.
- e. The **Operations** Exclusion does not apply.
- f. The **Completed Operations** Exclusion does not apply.
- g. The **Pollution** Exclusion does not apply.
- h. The **War** Exclusion is replaced by the following:

War

"Bodily injury" or "property damage" caused by war, whether or not declared, civil war, insurrection, rebellion or revolution, or any act or condition incident to any of the foregoing.

- i. The **Racing** Exclusion does not apply.
- j. The following exclusion is added:

Spousal Liability

"Bodily injury" to or "property damage" of the spouse of an "insured". However, we will pay all sums an "insured" legally must pay if named as a third-party defendant in a legal action commenced by their spouse against another party.

6. If the Limit Of Insurance shown in the Declarations is equal to or greater than \$160,000, the **Limit Of Insurance** provision is changed by the following:

Limit Of Insurance

Limit of Insurance applies except that we will apply the Limit Of Insurance shown in the Declarations to first provide the separate limits required by the New York Motor Vehicle Safety Responsibility Act for:

- a. "Bodily injury" not resulting in death of any one person caused by any one "accident";
- b. "Bodily injury" not resulting in death of two or more persons caused by any one "accident";
- c. "Bodily injury" resulting in death of any one person caused by any one "accident";
- d. "Bodily injury" resulting in death of two or more persons caused by any one "accident"; or
- e. "Property damage" in any one "accident".

This provision will not change our total Limit of Insurance.

7. If the Limit Of Insurance shown in the Declarations is less than \$160,000, the **Limit Of Insurance** provision is replaced by the following:

Limit of Insurance

Regardless of the number of covered "autos", "insureds", premiums paid, claims made or vehicles involved in the "accident", the most we will pay for the total of all damages and "covered pollution cost or expense" combined, resulting from any one "accident", is the Limit Of Insurance shown in the Declarations, except for those damages for "bodily injury" resulting in death. We will apply the Limit Of Insurance shown in the Declarations to first provide the separate limits required by the New York Motor Vehicle Safety Responsibility Act as follows:

- a. "Bodily injury" not resulting in death of any one person caused by any one "accident";
- b. "Bodily injury" not resulting in death of two or more persons caused by any one "accident"; or
- c. "Property damage" in any one "accident".

This provision will not change our total Limit of Insurance.

All "bodily injury" and "property damage" resulting from continuous or repeated exposure to substantially the same conditions will be considered as resulting from one "accident".

In addition, our Limit of Insurance for "bodily injury" resulting in death is as follows:

- a. Up to \$50,000 for "bodily injury" resulting in death of any one person caused by any one "accident"; and
- b. Up to \$100,000 for "bodily injury" resulting in death of two or more persons caused by any one "accident", subject to a \$50,000 maximum for any one person.

If the Limit Of Insurance shown in the Declarations is not exhausted by payment of damages for:

- a. "Bodily injury" not resulting in death;
- b. "Property damage"; or
- c. "Covered pollution cost or expense";

any remaining amounts will be used to pay damages for "bodily injury" resulting in death, to the extent the Limit Of Insurance shown in the Declarations is not increased.

8. If forming part of the Policy, the Nuclear Energy Liability Exclusion (Broad Form) does not apply to the Coverage Part.

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B. Changes In Trailer Interchange Coverage

Paragraph **A.2.** of **Section III – Trailer Interchange Coverage** in the Motor Carrier and Truckers Coverage Form are replaced by the following:

2. We have the right and duty to defend any "insured" against a "suit" asking for these damages, even if the allegations of the "suit" are groundless, false or fraudulent. However, we have no duty to defend any "insured" against a "suit" seeking damages for any "loss" to which this insurance does not apply. We may investigate and settle any claim or "suit" as we consider appropriate. Our duty to defend or settle ends when the Limit of Insurance for that coverage has been exhausted by payment of judgments or settlements.

C. Changes In Physical Damage Coverage

1. The **Owned Autos You Acquire After The Policy Begins** provision of Section I – **Covered Autos** is replaced by the following:

Owned Autos You Acquire After The Policy Begins

- a. If Symbols **1, 2, 3, 4, 5, 6** or **19** are entered next to a coverage in Item Two of the Declarations, then you have coverage for "autos" that you acquire after the policy period begins of the type described for the remainder of the policy period.
- b. But, if Symbol **7** is entered next to a coverage in Item Two of the Declarations, an "auto" you acquire after the policy period begins will be a covered "auto" for that coverage only if:
 - (1) We already cover all "autos" that you own for that coverage or it replaces an "auto" you previously owned that had that coverage; and
 - (2) You tell us within 30 days after you acquire it that you want us to cover it for that coverage.

- c. Notwithstanding the provisions of Paragraphs **a.** and **b.**, during the term of the Coverage Part, Physical Damage Coverage for an additional or replacement private passenger "auto" shall not become effective until you notify us and request coverage for the "auto".

However, if you replace a private passenger "auto" currently insured with us for a continuous period of at least 12 months, we will provide the same coverage which applied to the replaced "auto", without a coverage request, for five calendar days beginning on the date you acquired the replacement "auto". After five calendar days, coverage will not apply until you request coverage for the "auto".

- d. An "auto" that is leased or rented to you without a driver, under a written agreement for a continuous period of at least six months that requires you to provide primary insurance covering such "auto", will be considered an "auto" you own.

2. The **War Or Military Action** Exclusion is replaced by the following:

War Or Military Action

War, whether or not declared, civil war, insurrection, rebellion or revolution, or any act or condition incident to any of the foregoing.

3. **Deductible** is replaced by the following:

Deductible

For each covered "auto", our obligation to pay for, return or replace damaged or stolen property will be reduced by the applicable deductible shown in the Declarations.

4. The following provisions are added to **Physical Damage Coverage** and apply in place of any conflicting policy provisions:

a. Mandatory Inspection For Physical Damage Coverage

- (1) We have the right to inspect any private passenger "auto", including a non-owned "a to be insured GRANITE ROW MECHANICAL before physic become effective, except to the extent that this right is prescribed and limited by New York State Department of Financial Services' Insurance Regulation No. 79 (11 NYCRR 67) or Section 3411 of the New York Insurance Law.
- (2) When an inspection is required by us, you must cooperate and make the "auto" available for the inspection.

b. "Auto" Repairs Under Physical Damage Coverage

Payment of a physical damage "loss" shall not be conditioned upon the repair of the "auto". We may not require that repairs be made by a particular repair shop or concern.

c. Recovery Of Stolen Or Abandoned "Autos"

r "auto" insured for physical da abandoned, we or our authorized representative shall, when notified of the location of the "auto", have the right to take custody of the "auto" for safekeeping.

D. Changes In Conditions

1. Paragraphs **a.** and **b.(2)** of the **Duties In The Event Of Accident, Claim, Suit Or Loss** Condition in the Business Auto, Motor Carrier and Truckers Coverage Forms are replaced by the following:

We have no duty to provide coverage under this Policy if the failure to comply with the following duties is prejudicial to us:

- a.** In the event of "accident", claim, "suit" or "loss", you or someone on your behalf must give us or our authorized representative notice as soon as reasonably possible of the "accident" or "loss". Include:

- (1) How, when and where the "accident" or "loss" occurred;
- (2) The "insured's" name and address; and
- (3) To the extent possible, the names and addresses of any injured persons and witnesses.

Written notice by or on behalf of the injured person or any other claimant to our authorized representative shall be deemed notice to us.

- b.** Additionally, you and any other involved "insured" must:

- (2) Send us copies of any request, demand, order, notice, summons or legal paper received concerning the claim or "suit" as soon as reasonably possible.

2. Paragraph **a.** of the **Duties In The Event Of Loss** Condition in the Business Auto Physical Damage Coverage Form is replaced by the following:

We have no duty to provide coverage under this policy if the failure to comply with the following duties is prejudicial to us:

- a.** In the event of "loss", you must give us notice as soon as reasonably possible of the "loss". Include:

- (1) How, when and where the "loss" occurred; and
- (2) To the extent possible, the names and addresses of any injured persons and witnesses.

3. The **Legal Action Against Us** Condition in the Business Auto, Truckers and Motor Carrier Coverage Forms is replaced by the following:

Legal Action Against Us

- a. Except as provided in Paragraph b., no one may bring a legal action against us until:

- (1) There has been full compliance with all of the terms of the Coverage Form; and
- (2) Under Liability Coverage, we, by written agreement with the "insured" and the claimant, agree that the "insured" has an obligation to pay or until the amount of that obligation has finally been determined by judgment after trial. No person or organization has any right under this Policy to bring us into any action to determine the "insured's" liability.

- b. With respect to "bodily injury" claims, if we deny coverage or do not admit liability because an "insured" or the injured person, someone acting for the injured person or other claimant fails to give us written notice as soon as practicable, then the injured person, someone acting for the injured person or other claimant may bring an action against us, provided the sole question is whether the denial of coverage or nonadmission of liability is based on the failure to provide timely notice.

However, the injured person, someone acting for the injured person or other claimant may not bring an action if within 60 days after we deny coverage or do not admit liability, we or an "insured":

- (1) Brings an action to declare the rights of the parties under the Policy; and
- (2) Names the injured person, someone acting for the injured person or other claimant as a party to the action.

4. Paragraph d. of the **Other Insurance** Condition in the Business Auto Coverage Form and Paragraph c. of the **Other Insurance** Condition in the Business Auto Physical Damage Coverage Form and Paragraph h. of the **Other Insurance – Primary And Excess Insurance Provisions** in the Motor Carrier Coverage Form and Paragraph f. of the **Other Insurance – Primary And Excess Insurance Provisions** in the Truckers Coverage Form are replaced by the following:

When this Coverage Form and any valid and collectible insurance under any other Coverage Form or policy covers on the same basis, either excess or primary, we will pay only our share. Our share is the proportion that the Limit of Insurance of our Coverage Form bears to the total of the limits of all the Coverage Forms and policies covering on the same basis.

5. The following provision is added and supersedes any provision to the contrary:

Failure to give notice to us as soon as practicable, as required under this Coverage Part, shall not invalidate any claim made by the "insured", injured person or any other claimant, unless the failure to provide such timely notice has prejudiced us. However, no claim made by the "insured", injured person or other claimant will be invalidated if it shall be shown not to have been reasonably possible to give such timely notice and that notice was given as soon as was reasonably possible thereafter.

6. The **Loss Payment – Physical Damage Coverages** Condition is replaced by the following:

Loss Payment – Physical Damage Coverages

At our option, we may:

- a. Pay for or replace damaged or stolen property; or
- b. Return the stolen or damaged property, at our expense. We will pay for any damage that results to the "auto" from the "loss".

If we pay for the "loss", our payment will include the applicable sales tax for the damaged or stolen property.

7. The Two Or More Coverage Forms Or Policies Issued By Us Condition in the Business Auto, Motor Carrier and Truckers Coverage Forms is changed as follows:

This condition does not apply to liability coverage.

8. The Premium Audit Condition is amended by the addition of the following:

An audit to determine the final premium due or to be refunded will be completed within 180 days after the expiration date of the Policy or the anniversary date, if this is a continuous policy or a policy written for a term longer than one year. But the audit may be waived if:

- a. The total annual premium attributable to the auditable exposure base is not reasonably expected to exceed \$1,500; or
- b. The Policy requires notification to the insurer with specific identification of any additional exposure units (e.g., autos) for which coverage is requested.
- c. Except as provided in Paragraphs a. and b. above, the **Examination Of Your Books And Records** Common Policy Condition continues to apply.

E. Changes In Definitions

The **Definitions** section in the Business Auto, Business Auto Physical Damage, Motor Carrier and Truckers Coverage Forms is changed as follows:

1. The "covered pollution cost or expense" definition in all coverage forms, except the Business Auto Physical Damage Coverage Form, is replaced by the following:

"Covered pollution cost or expense" means any cost or expense arising out of:

- a. Any request, demand, order or statutory or regulatory requirement; or
- b. Any claim or "suit" by or on behalf of a governmental authority demanding;

that the "insured" or others test for, monitor, clean up, remove, contain, treat, detoxify or neutralize, or in any way respond to, or assess the effects of, "pollutants".

2. The "insured contract" definition in all coverage forms, except the Business Auto Physical Damage Coverage Form, is replaced by the following:

"Insured contract" means:

- a. A lease of premises;
- b. A sidetrack agreement;
- c. An easement or license agreement in connection with vehicle or pedestrian private railroad crossings at grade;
- d. Any other easement agreement, except in connection with construction or demolition operations on or within 50 feet of a railroad;
- e. An indemnification of a municipality as required by ordinance, except in connection with work for a municipality;
- f. That part of any contract or agreement entered into, as part of your business, by you or any of your employees, pertaining to the rental or lease of any "auto"; or
- g. That part of any other contract or agreement pertaining to your business under which you assume the tort liability of another to pay damages because of "bodily injury" or "property damage" to a third person or organization, if the contract or agreement is made prior to the "bodily injury" or "property damage". Tort liability means a liability that would be imposed by law in the absence of any contract or agreement.

An "insured contract" does not include that part of any contract or agreement:

- a. That pertains to the loan, lease or rental of an "auto" to you or any of your employees, if the "auto" is loaned, leased or rented with a driver;
- b. That holds a person or organization engaged in the business of transporting property by "auto" for hire harmless for your use of a covered "auto" over a route or territory that person or organization is authorized to serve by public authority; or
- c. Under which the "insured" assumes liability for injury or damage caused by the dumping, discharge or escape of:
 - (1) Irritants, pollutants or contaminants that are, or that are contained in, any property that is:
 - (a) Being moved from the place where such property or pollutants are accepted by the "insured" for movement into or onto the covered "auto";

- (b) Being transported or towed by the covered "auto";
 - (c) Being moved from the covered "auto" to the place where such property or pollutants are finally delivered, disposed of or abandoned by the "insured";
 - (d) Otherwise in the course of transit; or
 - (e) Being stored, disposed of, treated or processed in or upon the covered "auto" other than fuels, lubricants, fluids, exhaust gases or other similar pollutants that are needed for, or result from, the normal electrical, hydraulic or mechanical functioning of the covered "auto" or its parts.
- (2) Irritants, pollutants or contaminants not described in Paragraph (1) above unless:
- (a) The pollutants or any property in which the pollutants are contained is upset, overturned or damaged as a result of the maintenance or use of the covered "auto"; and
 - (b) The discharge, dispersal, release or escape of the pollutants is caused directly by such upset, overturn or damage.
3. The "mobile equipment" definition is replaced by the following:
- "Mobile equipment" means any of the following types of land vehicles, including any attached machinery or equipment:
- a. Bulldozers, farm machinery, forklifts and other vehicles designed for use principally off public roads;
 - b. Vehicles maintained for use solely on or next to premises you own or rent;
 - c. Vehicles that travel on crawler treads;
 - d. Vehicles, whether self-propelled or not, maintained primarily to provide mobility to permanently mounted:
 - (1) Power cranes, shovels, loaders, diggers or drills; or
 - (2) Road construction or resurfacing equipment such as graders, scrapers or rollers.

- e. Vehicles not described in Paragraph a., b., c. or d. above that are not self-propelled and are maintained primarily to provide mobility to permanently attached equipment of the following types:
 - (1) Air compressors, pumps and generators, including spraying, welding, building cleaning, geophysical exploration, lighting and well-servicing equipment; or
 - (2) Cherry pickers and similar devices used to raise or lower workers.
- f. Vehicles not described in Paragraph a., b., c. or d. above maintained primarily for purposes other than the transportation of persons or cargo. However, self-propelled vehicles with the following types of permanently attached equipment are not "mobile equipment" but will be considered "autos":
 - (1) Equipment designed primarily for:
 - (a) Snow removal;
 - (b) Road maintenance, but not construction or resurfacing; or
 - (c) Street cleaning;
 - (2) Cherry pickers and similar devices mounted on automobile or truck chassis and used to raise or lower workers; and
 - (3) Air compressors, pumps and generators, including spraying, welding, building cleaning, geophysical exploration, lighting or well-servicing equipment.

"Mobile equipment" does not include land vehicles that are subject to a compulsory or financial responsibility law or other motor vehicle insurance law where it is licensed or principally garaged. Land vehicles subject to a compulsory or financial responsibility law or other motor vehicle insurance law are considered "autos".

However, the operation of:

- a. Equipment described in Paragraphs f.(2) and f.(3) above; or
- b. Machinery or equipment that is on, attached to, or part of, a land vehicle that would qualify under the definition of "mobile equipment" if it were not subject to a compulsory or financial responsibility law or other motor vehicle insurance law where it is licensed or principally garaged;

is considered operation of "mobile equipment" and not operation of an "auto".

F. Changes In Forms And Endorsements

1. All references to Underinsured Motorists Coverage shall mean Supplementary Uninsured/Underinsured Motorists Coverage.
2. If the Garagekeepers Coverage endorsement or the Garagekeepers Coverage – Customers' Sound-receiving Equipment endorsement is attached, then:
 - a. Paragraph **B.2.** is replaced by the following:
 2. We will have the right and duty to defend any "insured" against a "suit" asking for these damages, even if the allegations of the "suit" are groundless, false or fraudulent. However, we have no duty to defend any "insured" against a "suit" seeking damages for "loss" to which this insurance does not apply. We may investigate and settle any claim or "suit" as we consider appropriate. Our duty to defend or settle ends for a coverage when the Limit of Insurance for that coverage has been exhausted by payment of judgments or settlements.
 - b. Exclusion **3.** is replaced by the following:
 3. We will not pay for "loss" caused by war, whether or not declared, civil war, insurrection, rebellion or revolution, or any act or condition incident to any of the foregoing.
3. If the Auto Medical Payments Coverage endorsement is attached, then Exclusion **C.6.** is replaced by the following:
 6. "Bodily injury" caused by war, whether or not declared, civil war, insurrection, rebellion or revolution, or any act or condition incident to any of the foregoing.
4. If the Single Interest Automobile Physical Damage Insurance Policy is attached, the **War** Exclusion is replaced by the following:

This insurance does not apply to "loss" caused by war, whether or not declared, civil war, insurrection, rebellion or revolution, or any act or condition incident to any of the foregoing.
5. If the Stated Amount Insurance endorsement is attached, then Paragraph **C.2.** of that endorsement does not apply.

6. If the Trailer Interchange Coverage endorsement is attached, then Paragraph **A.2.** is replaced by the following:
 2. We have the right and duty to defend any "insured" against a "suit" asking for these damages, even if the allegations of the "suit" are groundless, false or fraudulent. However, we have no duty to defend any "insured" against a "suit" seeking damages for any "loss" to which this insurance does not apply. We may investigate and settle any claim or "suit" as we consider appropriate. Our duty to defend or settle ends for a coverage when the Limit of Insurance for that coverage has been exhausted by payment of judgments or settlement.
7. If the Motor Carrier Endorsement is attached, then Paragraph **B.1.c.** is replaced by the following:
 - c. We have the right and duty to defend any "insured" against a "suit" asking for these damages, even if the allegations of the "suit" are groundless, false or fraudulent. However, we have no duty to defend any "insured" against a "suit" seeking damages for any "loss" to which this insurance does not apply. We may investigate and settle any claim or "suit" as we consider appropriate. Our duty to defend or settle ends for a coverage when the Limit of Insurance for that coverage has been exhausted by payment of judgements or settlements.
8. All references to his or her, he or she, him or her or brother or sister are replaced by their, they, them or sibling, respectively.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

PRIMARY AND NONCONTRIBUTORY – OTHER INSURANCE CONDITION

This endorsement modifies insurance provided under the following:

GARAGE COVERAGE FORM
BUSINESS AUTO COVERAGE FORM
MOTOR CARRIER COVERAGE FORM
TRUCKERS COVERAGE FORM

With respect to coverage provided by this endorsement, the provisions of the Coverage Form apply unless modified by the endorsement.

- A.** The following is added to the **Other Insurance** Condition in the Business Auto Coverage Form and the Garage Coverage Form and the **Other Insurance – Primary And Excess Insurance Provisions** in the Motor Carrier Coverage Form and the Truckers Coverage Form and supersedes any provision to the contrary:

This Coverage Form's Covered Autos Liability Coverage is primary to and will not seek contribution from any other insurance available to an "insured" under your policy provided that:

1. Such "insured" is a Named Insured under such other insurance; and
2. You have agreed in writing in a contract or agreement that this insurance would be primary and would not seek contribution from any other insurance available to such "insured".

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

NEW YORK MANDATORY PERSONAL INJURY PROTECTION ENDORSEMENT

Cedarline agrees with the named insured, as follows:

Section I

Mandatory Personal Injury Protection

Cedarline will pay first-party benefits to reimburse economic loss sustained by an eligible injured person on account of personal injuries caused by an accident arising out of the use or operation of a motor vehicle or a motorcycle during the policy period and within the United States of America, its territories or possessions, or Canada.

First-party Benefits

First-party benefits, other than death benefits, are payments equal to basic economic loss, reduced by the following:

- (a) 20 percent of the eligible injured person's loss of earnings from work to the extent that an eligible injured person's basic economic loss consists of such loss of earnings;
- (b) Amounts recovered or recoverable on account of personal injury to an eligible injured person under State or Federal laws providing social security disability or workers' compensation benefits, or disability benefits under article 9 of the New York Workers' Compensation Law;
- (c) The amount of any applicable deductible, provided that such deductible shall apply to each accident, but only to the total of first-party benefits insured accident

Basic Economic Loss

Basic economic loss shall consist of medical expense, work loss, other expense and, when death occurs, a death benefit as herein provided. Except for such death benefit, basic economic loss shall not include any loss sustained on account of death. Basic economic loss of each eligible injured person on account of any single accident shall not exceed \$50,000, except that any death benefit hereunder shall be in addition thereto.

Medical Expense

Medical expense shall consist of necessary expenses for:

- (a) Medical, hospital (including services rendered in compliance with article 41 of the Public Health Law, whether or not such services are rendered directly by a hospital), surgical, nursing, dental, ambulance, X-ray, prescription drug and prosthetic services;
- (b) Psychiatric, physical and occupational therapy and rehabilitation;
- (c) Any nonmedical remedial care and treatment rendered in accordance with a religious method of healing recognized by the laws of New York; and
- (d) Any other professional health services.

These medical expenses will not be subject to a time limitation, provided that, within one year after the date of the accident, it is ascertainable that further medical expenses may be sustained as a result of the injury. Payments hereunder for necessary medical expenses shall be subject to the limitations and requirements of section 5108 of the New York Insurance Law.

Work Loss

Work loss shall consist of the sum of the following losses and expenses, up to a maximum payment of \$2,000 per month for a maximum period of three years from the date of the accident:

- (a) Loss of earnings from work which the eligible injured person would have performed had such person not been injured, except that an employee who is entitled to receive monetary payments, pursuant to statute or contract with the employer, or who receives voluntary monetary benefits paid for by the employer, by reason of such employee's inability to work because of personal injury arising out of the use or operation of a motor vehicle or a motorcycle, shall not be entitled to receive first-party benefits for loss of earnings from work to the extent that such monetary payments or benefits from the employer do not result in the employee suffering a reduction in income or a reduction in such employee's level of future benefits arising from a subsequent illness or injury; and
- (b) Reasonable and necessary expenses sustained by the eligible injured person in obtaining services in lieu of those which such person would have performed for income.

Other Expenses

Other expenses shall consist of all reasonable and necessary expenses, other than medical expense and work loss, up to \$25 per day for a period of one year from the date of the accident causing injury.

Death Benefit

Upon the death of any eligible injured person, caused by an accident to which this coverage applies, the Company will pay to the estate of such person a death benefit of \$2,000.

Eligible Injured Person

Subject to the exclusions and conditions set forth below, an eligible injured person is:

- (a) The named insured and any relative who sustains personal injury arising out of the use or operation of any motor vehicle;
- (b) The named insured and any relative who sustains personal injury arising out of the use or operation of any motorcycle, while not occupying a motorcycle;
- (c) Any other person who sustains personal injury arising
insured STONEPATH SERVICE GROUP
while n

- (d) Any New York State resident who sustains personal injury arising out of the use or operation of the insured motor vehicle outside of New York State while not occupying another motor vehicle.

Exclusions

This coverage does not apply to personal injury sustained by:

- (a) The named insured while occupying, or while a pedestrian through being struck by, any motor vehicle owned by the named insured with respect to which the coverage required by the New York Comprehensive Motor Vehicle Insurance Reparations Act is not in effect;
- (b) Any relative while occupying, or while a pedestrian through being struck by, any motor vehicle owned by the relative with respect to which the coverage required by the New York Comprehensive Motor Vehicle Insurance Reparations Act is not in effect;
- (c) The named insured or relative while occupying, or while a pedestrian through being struck by, a motor v
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Comprehensive Motor Vehicle Insurance Reparations Act is in effect; however, this exclusion does not apply to personal injury sustaine
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of the New York Vehicle and Traffic Law, unless that person is the operator, an owner, or an employee of the owner or operator, of such bus or school bus;
- (d) Any person i
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of the New York Vehicle and Traffic Law, but only if such person is a named insured or relative under any other policy providing the coverage required by the New York Comprehensive Motor Vehicle Insurance Reparations Act; however, this exclusion does not apply to the operator, an owner, or an employee of the owner or operator, of such bus or school bus;
- (e) Any person while occupying a motorcycle;
- (f) Any person who intentionally causes his or her own personal injury;

- (g) Any person as a result of operating a motor vehicle while in an intoxicated condition or while his or her ability to operate the vehicle is impaired by the use of a drug (within the meaning of section 1192 of the New York Vehicle and Traffic Law) except that coverage shall apply to necessary emergency health services rendered in a general hospital, as defined in section 2801(10) of the New York Public Health Law, including ambulance services attendant thereto and related medical screening. However, where the person has been convicted of violating section 1192 of the New York Vehicle and Traffic Law while operating a motor vehicle in an intoxicated condition or while his or her ability to operate such vehicle is impaired by the use of a drug, and the conviction is a final determination, the Company has a cause of action against such person for the amount of first-party benefits that are paid or payable; or
- (h) Any person while:
- (i) Committing an act which would constitute a felony, or seeking to avoid lawful apprehension or arrest by a law enforcement officer;
 - (ii) Operating a motor vehicle in a race or speed test;
 - (iii) Operating or occupying a motor vehicle known to that person to be stolen; or
 - (iv) Repairing, servicing or otherwise maintaining a motor vehicle if the conduct is within the course of a business of repairing, servicing or otherwise maintaining a motor vehicle and the injury occurs on the business premises.
- (i) The named insured or relative while not occupying a motor vehicle or a motorcycle when struck by a motorcycle in New York State with respect to which the coverage required by the New York Comprehensive Motor Vehicle Insurance Reparations Act is in effect;
- (j) Any New York named insured IRONVALE LOGISTICS use or operation outside of New York State if such resident is the owner of a motor vehicle insured CEDARLINE MOTORWORKS the coverage Comprehensive Motor Vehicle Insurance Reparations Act;

- (k) Any New York named insured IRONVALE LOGISTICS use or operation outside of New York State, if such resident is the owner of a motor vehicle for which the coverage required by the New York Comprehensive Motor Vehicle Insurance Reparations Act is not in effect.

Other Definitions

When used in reference to this coverage:

- (a) The "insured motor vehicle" RIDGEWAY a motor vehicle owned by the named insured and to which the bodily injury liability insurance of this policy applies and for which a specific premium is charged;
- (b) "Motorcycle" RIDGEWAY a vehicle as defined in section 123 of the New York Vehicle and Traffic Law and which is required to carry financial security pursuant to article 6, 8 or 48-A of the Vehicle and Traffic Law;
- (c) "Motor vehicle" RIDGEWAY a motor vehicle, as defined in section 123 of the New York Vehicle and Traffic Law, and also includes fire and police vehicles, but shall not include any motor vehicle not required to carry financial security pursuant to article 6, 8 or 48-A of the Vehicle and Traffic Law, or a motorcycle as defined above;
- (d) "Named insured" RIDGEWAY the person or organization named in the declarations;
- (e) "Occupying" RIDGEWAY in or upon or entering into or alighting from;
- (f) "Personal injury" RIDGEWAY bodily injury, sickness or disease;
- (g) "Relative" RIDGEWAY a spouse, child, or other person related to the named insured by blood, marriage, or adoption (including a ward or foster child) who is insured by FAIRMOUNT LOGISTICS who is temporarily living elsewhere; and
- (h) "Use or operation" of a motor vehicle or a motorcycle includes the loading or unloading of such vehicle.

Conditions

Clearwater Builders

No action shall lie against the named insured on a condition precedent thereto, there shall have been full compliance with the terms of this coverage.

Notice. In the event of an accident, written notice setting forth details sufficient to identify the eligible injured person, along with reasonably obtainable information regarding the time, place and circumstances of the accident, shall be given by, or on behalf of, each eligible injured person, to the Company, or any of the Company's authorized agents, as soon as reasonably practicable, but in no event more than 30 days after the date of the accident, unless the eligible injured person submits written proof providing clear and reasonable justification for the failure to comply with such time limitation. If an eligible injured person or that person's legal representative institutes a proceeding to recover damages for personal injury under section 5104(b) of the New York Insurance Law, a copy of the summons and complaint or other process served in connection with such action shall be forwarded as soon as practicable to the Company or any of the Company's authorized agents by such eligible injured person or that person's legal representative.

Proof of Claim; Medical, Work Loss, and Other Necessary Expenses. In the case of a claim for health service expenses, the eligible injured person or that person's assignee or representative shall submit written proof of claim to the Company, including full particulars of the nature and extent of the injuries and treatment received and contemplated, as soon as reasonably practicable but, in no event later than 45 days after the date services are rendered. The eligible injured person or that person's representative shall submit written proof of claim for work loss benefits and for other necessary expenses to the Company as soon as reasonably practicable but, in no event, later than 90 days after the work loss is incurred or the other necessary services are rendered. The foregoing time limitations for the submission of proof of claim shall apply unless the eligible injured person or that person's representative submits written proof providing clear and reasonable justification for the failure to comply with such time limitation. Upon request by the Company, the eligible injured person or that person's assignee or representative shall:

- (a) Execute a written proof of claim under oath;
- (b) As may reasonably be required submit to examinations under oath by any person named by the Company and subscribe the same;
- (c) Provide authorization that will enable the Company to obtain medical records; and
- (d) Provide any other pertinent information that may assist the Company in determining the amount due and payable.

The eligible injured person shall submit to medical examination by physicians selected by, or acceptable to, the Company, when, and as often as, the Company may reasonably require.

Arbitration. In the event any person making a claim for first-party benefits and the Company do not agree regarding any matter relating to the claim, such person shall have the option of submitting such disagreement to arbitration pursuant to procedures promulgated or approved by the Superintendent of Financial Services.

Reimbursement and Trust Agreement. To the extent that the Company pays first-party benefits, the Company is entitled to the proceeds of any settlement or judgment resulting from the exercise of any right of recovery for damages for personal injury under section 5104(b) of the New York Insurance Law. The Company shall have a lien upon any such settlement or judgment to the extent that the Company has paid first-party benefits. An eligible injured person shall:

- (a) Hold in trust, for the Company, all rights of recovery which that person shall have for personal injury under section 5104(b) of the New York Insurance Law;
- (b) Do whatever is proper to secure, and shall do nothing to prejudice, such rights; and
- (c) Execute, and deliver to the Company, instruments and papers as may be appropriate to secure the rights and obligations of such person and the Company established by this provision.

An eligible injured person shall not compromise an action to recover damages brought under section 5104(b) of the New York Insurance Law, except:

- (a) With the written consent of the Company;
- (b) With approval of the court; or
- (c) Where the amount of the settlement exceeds \$50,000.

Other Coverage. Where more than one source of first-party benefits required by article 51 of the New York Insurance Law and article 6 or 8 of the New York Vehicle and Traffic Law is available and applicable to an eligible injured person in any one accident, this Company is liable to an eligible injured person only for an amount equal to the maximum amount that the eligible injured person is entitled to recover under this coverage, divided by the number of available and applicable sources of required first-party benefits. An eligible injured person shall not recover duplicate benefits for the same elements of loss under this coverage or any other mandatory first-party motor vehicle or no-fault motor vehicle insurance coverage issued in compliance with the laws of another state.

If the eligible injured person is entitled to benefits under any such mandatory first-party motor vehicle or no-fault motor vehicle insurance for the same elements of loss under this coverage, this Company shall be liable only for an amount equal to the proportion that the total amount available under this coverage bears to the sum of the amount available under this coverage and the amount available under such other mandatory insurance for the common elements of loss. However, where another state's mandatory first-party or no-fault motor vehicle insurance law provides unlimited coverage available to an eligible injured person for an element of loss under this coverage, the obligation of this Company is to share equally for that element of loss with such other mandatory insurance until the \$50,000, or \$75,000 if Optional Basic Economic Loss (OBEL) coverage is purchased, limit of this coverage is exhausted by the payment of that element of loss and any other elements of loss.

Section II

Excess Coverage

If motor vehicle medical payments coverage or any disability coverages or uninsured motorists coverage are afforded under this policy, such coverages shall be excess insurance over any Mandatory PIP, OBEL or Additional PIP benefits paid or payable or which would be paid or payable but for the application of a deductible under this or any other motor vehicle No-Fault insurance policy.

Section III

Constitutionality

If it is conclusively determined by a court of competent jurisdiction that the New York Comprehensive Motor Vehicle Insurance Reparations Act, or any amendment thereto, is invalid or unenforceable in whole or in part, then, subject to the approval of the Superintendent of Financial Services, the Company may amend this policy and may also recompute the premium for the existing or amended policy.

These amendments and recomputations will be effective retroactively to the date that such act or any amendment is deemed to be invalid or unenforceable in whole or in part.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

ADDITIONAL PERSONAL INJURY PROTECTION
(NEW YORK)

Cedarline agrees with the named insured, subject to all of the provisions, exclusions and conditions of the mandatory Personal Injury Protection Endorsement, not expressly modified in this endorsement as follows:

SCHEDULE

Added Personal Injury Protection (Additional Limits)

Designation Or Description Of Vehicle	Without Additional Death Benefit				Additional Death Benefit	
	Total Additional Personal Injury Protection Limits	Monthly Work Loss	Other Expenses (Per Day)	Premium	Limit	Premium
	\$	\$	\$	\$	\$	\$
Information shown in the Declarations	\$	\$	\$	\$	\$	\$
	\$	\$	\$	\$	\$	\$
	\$	\$	\$	\$	\$	\$
	\$	\$	\$	\$	\$	\$

Additional Personal Injury Protection

Cedarline will pay additional first party benefits to extended economic loss on account of personal injuries sustained by an eligible injured person and caused by an accident arising out of the use or operation of a motor vehicle or a motorcycle during the policy period. This coverage only applies to motor vehicle accidents within the United States of America, its territories or possessions, or Canada.

Eligible Injured Person

Subject to the exclusions set forth below, an eligible injured person is:

- (a) The named insured and any relative who sustains personal i of the use or operation of any IRONVALE BUILDERS
- (b) The named insured and any relative who sustains personal injury arising out of the use or operation of any motorcycle while not occupying a motorcycle;

- (c) Any other person who sustains personal injury arising p insured GRANITE ROW WORKS insured IRONVALE BUILDERS
- (d) Any other person who sustains personal injury arising out of the use or operation of any other motor vehicle (other than a public or livery conveyance) while occupying such other motor vehicle, if such other motor vehicle is being operated by the named insured or any relative.

Exclusions

This coverage does not apply to personal injury sustained by:

- (a) Any person while occupying a motor vehicle owned by such person with respect to which the coverage required by the New York Comprehensive Motor Vehicle Insurance Reparations Act is not in effect;

(b) Any person while occupying, or while a pedestrian through being struck by, a motor vehicle owned by the named insured with respect to which additional personal injury protection coverage is not provided under this policy;

(c) Any relative while occupying, or while a pedestrian through being struck by, a motor vehicle owned by such relative with respect to which additional personal injury protection coverage is not provided under this policy;

(d) Any New York named insured IRONVALE LOGISTICS use or operation of a motor vehicle in New York State if such resident is the owner of a motor vehicle for which the coverage required by the New York Comprehensive Motor Vehicle Insurance Reparations Act is not in effect;

(e) Any person while occupying a motorcycle;

(f) Any person who intentionally causes his own personal injury;

(g) Any person as a result of operating a motor vehicle while in an intoxicated condition or while his or her ability to operate the vehicle is impaired by the use of a drug (within the meaning of Section 1192 of the New York Vehicle and Traffic Law) except that coverage shall apply to necessary emergency health services rendered in a general hospital, as defined in section 2801(10) of the New York Public Health Law, including ambulance services attendant thereto and related medical screening. However, where the person has been convicted of violating section 1192 of the New York Vehicle and Traffic Law while operating a motor vehicle in an intoxicated condition or while his or her ability to operate such vehicle is impaired by the use of a drug, and the conviction is a final determination, the Company has a cause of action against such person for the amount of first party benefits that are paid or payable; or

(h) Any person while:

(i) Committing an act which would constitute a felony, or seeking to avoid lawful apprehension or arrest by a law enforcement officer;

(ii) Operating a motor vehicle in a race or speed test;

(iii) Operating or occupying a motor vehicle known to him to be stolen; or

(iv) Repairing, servicing or otherwise maintaining a motor vehicle if such conduct is within the course of a business of repairing, servicing or otherwise maintaining a motor vehicle and the injury occurs on the business premises.

Additional First Party Benefits

Additional first party benefits are payments equal to extended economic loss reduced by:

(a) 20 percent of the eligible injured person's loss of earnings from work, to the extent that the extended economic loss covered by this endorsement includes such loss of earnings;

(b) Amounts recovered or recoverable on account of personal injury to an eligible injured person under State or Federal laws providing social security disability or workers' compensation benefits or disability benefits under article 9 of the New York Workers' Compensation Law, which amounts have not been applied to reduce first party benefits recovered or recoverable under basic economic loss;

(c) Amounts recovered or recoverable by the eligible injured person for any element of extended economic loss covered by this endorsement under any mandatory source of first-party automobile no-fault benefits required by the laws of any State (other than the State of New York) of the United States of America, its possessions or territories, or by the laws of any province of Canada.

Extended Economic Loss

Extended economic loss shall consist of the following:

(a) Basic economic loss sustained on account of an accident occurring within the United States of America, its possessions or territories or Canada, which is not recovered or recoverable under a policy issued in satisfaction of the requirements of article 6 or 8 of the New York Vehicle and Traffic Law and article 51 of the New York Insurance Law;

(b) The difference between:

(i) Basic economic loss; and

(ii) Basic economic loss recomputed in accordance with the time and dollar limits set out in the declarations; and

(c) An additional death benefit in the amount set out in the declarations.

Two Or More Vehicles Insured Under This Policy

The limit of liability under this endorsement applicable to injuries sustained by an eligible injured person while occupying, or while a pedestrian through being struck by, the insured motor vehicle shall be as stated in the Declarations for that insured motor vehicle. The limit of liability for injuries covered by this endorsement and sustained by an eligible injured person while occupying, or while a pedestrian through being s

insured GRANITE ROW FABRICATION
for this
motor vehicle under this policy.

Arbitration

In the event any person making a claim for additional first-party benefits and the Company do not agree regarding any matter relating to the claim, such person shall have the option of submitting such disagreement to arbitration pursuant to procedures promulgated or approved by the Superintendent of Financial Services.

Subrogation

In the event of any payment for extended economic loss, the Company is subrogated to the event of such payments to the rights of the person to whom, or for whose benefit, such payments were made. Such person must execute and deliver instruments and papers and do whatever else is necessary to secure such rights. Such person shall do nothing to prejudice such rights.

Other Coverage; Nonduplication

The eligible injured person shall not recover duplicate benefits for the same elements of loss covered by this endorsement or any other optional first-party automobile or no-fault automobile insurance coverage.

If an eligible injured person is entitled to New York mandatory and additional personal injury protection benefits under any other policy, and if such eligible injured person is not entitled to New York mandatory personal injury protection benefits under this policy, then the coverage provided under this New York Additional Personal Injury Protection Endorsement shall be excess over such other New York mandatory and additional personal injury protection benefits.

When coverage provided under this endorsement applies on an excess basis, it shall apply only in the amount by which the total limit of liability of New York mandatory and additional personal injury protection coverage available under this policy exceeds the total limit of liability for any other applicable New York mandatory and additional personal injury protection coverage.

Subject to the provisions of the preceding three paragraphs, if the eligible injured person is entitled to benefits under any other optional first party automobile or no-fault automobile insurance for the same elements of loss covered by this endorsement, this Company shall be liable only for an amount equal to the proportion that the total amount available under this endorsement bears to the sum of the amounts available under this endorsement and such other optional insurance, for the same element of loss.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

NEW YORK OPTIONAL BASIC ECONOMIC LOSS COVERAGE

The company agrees with the named insured, subject to all of the provisions, exclusions and conditions of the New York Mandatory Personal Injury Protection (PIP) Endorsement or the New York Mandatory Personal Injury Protection Endorsement – Motorcycles, not expressly modified in this endorsement, as follows:

The definition of Basic Economic Loss contained in the New York Mandatory Personal Injury Protection Endorsement or the New York Mandatory Personal Injury Protection Endorsement – Motorcycles is replaced by the following:

Basic Economic Loss

Basic economic loss shall consist of medical expense, work loss, other expense and, when death occurs, a death benefit as herein provided. Except for such death benefit, basic economic loss shall not include any loss sustained on account of death. Basic economic loss of each eligible injured person on account of any single accident shall not exceed \$75,000, the last \$25,000 of which represents optional basic economic loss (OBEL) coverage, payable after the first \$50,000 of basic economic loss has been exhausted, that the eligible injured person or that person's legal representative may specify will be applied to one of the following four options:

- (1) Basic economic loss;
- (2) Loss of earnings from work;
- (3) Psychiatric, physical or occupational therapy and rehabilitation;
- (4) A combination of options (2) and (3).

Any death benefit hereunder shall be in addition thereto.

Exclusion (c) set forth in the New York Mandatory Personal Injury Protection Endorsement is replaced by the following:

- (c) The named insured, or any relative while occupying or while a pedestrian through being struck by, a motor insured GRANITE ROW WORKS coverage
sive Motor Vehicle Reparations Act is in effect; however, this exclusion does not apply to:

- (1) The Optional Basic Economic Loss coverage provided under this endorsement, unless OBEL coverage is provided by the policy covering the other motor vehicle; or

- (2) To personal injury sustained in New York State by the named insured or relative while occupying a bus or school bus, as defined in sections 104 and 142 of the New York Vehicle and Traffic Law, unless that person is the operator, an owner, or an employee of the owner or operator, of such bus or school bus.

ELECTION

Election of the OBEL option shall be made by the eligible injured person or that person's legal representative after such person has incurred expense aggregating \$30,000 in basic economic loss and after receiving the required notices from the company that an OBEL election may be made. Failure of the eligible injured person or that person's legal representative to respond to the second notice within 15 calendar days after its mailing shall be considered an election by the eligible injured person to apply OBEL coverage to all elements of basic economic loss. Once made by the eligible injured person or that person's legal representative, an OBEL election cannot be changed. However, if claims payable under OBEL coverage have not yet been received by the company, an eligible injured person who has failed to respond to the second notice in a timely manner may make an election.

NOTICE

If OBEL coverage is payable under this policy, but Mandatory PIP is being paid under a policy covering another motor vehicle, then the named insured or relative shall notify the company no later than 90 days after Mandatory PIP benefits under that other policy have been exhausted. The company shall then send its OBEL election notice.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

NEW YORK SUPPLEMENTARY UNINSURED/UNDERINSURED MOTORISTS ENDORSEMENT

We, the company, agree with you, as the named insured, in return for payment of the premium for this coverage, to provide Supplementary Uninsured/Underinsured Motorists (SUM) coverage, subject to the following terms and conditions:

INSURING AGREEMENTS

1. Definitions

For purposes of this SUM endorsement, the following terms have the following meanings:

a. Insured

The unqualified term "insured" means:

- (1) You, as the named insured and, while residents of the same household, your spouse and the relatives of either you or your spouse;
- (2) Any person while acting in the scope of that person's duties for you, except with respect to the use and operation by such person of a motor vehicle not covered under this policy, where such person is:
 - (a) Your employee and you are a fire department;
 - (b) Your member and you are a fire company, as defined in General Municipal Law section 100;
 - (c) Your employee and you are an ambulance service, as defined in Public Health Law section 3001; or
 - (d) Your member and you are a voluntary ambulance service, as defined in Public Health Law, section 3001;
- (3) Any other person while occupying:
 - (a) A motor vehicle insured for SUM under this policy; or
 - (b) Any other motor vehicle while being operated by you or your spouse; and
- (4) Any person, with respect to damages such person is entitled to recover, because of bodily injury to which this coverage insured BLUE FORK MOTORWORKS above.

b. Bodily Injury

The term "bodily injury" means bodily harm, including sickness, disease or death resulting therefrom.

c. Uninsured Motor Vehicle

The term "uninsured motor vehicle" means a motor vehicle that, through its ownership, maintenance or use, results in bodily injury to an insured, and for which:

- (1) No bodily injury liability insurance policy or bond applies to such motor vehicle (including a vehicle that was stolen, operated without the owner's permission or unregistered) at the time of the accident; or
- (2) The owner and operator cannot be identified (including a hit-and-run motor vehicle), and to an insure the insured occupied by the accident, provided that:
 - (a) The insured or someone on the insured's behalf:
 - (i) Reported the accident within 24 hours or as soon as reasonably possible to a police, peace or judicial officer or to the Commissioner of Motor Vehicles; and
 - (ii) Filed with the Company a statement t insured FAIRMOUNT WORKS represen v s causes of action arising out of such accident for damages against a person or persons whose identity is unascertainable, and setting forth the facts in support thereof; and

- (b) At the request of the Company, the insured or the insured's legal representative makes available for inspection the records of the insured MERIDIAN ENTERPRISES the accident.
- (3) There is a bodily injury liability insurance coverage or bond applicable to HARBOR motor vehicle at the time of accident, but:
- (a) The amount of HARBOR insurance coverage or bond is less than the third-party bodily injury liability limit of this policy; or
- (b) The amount of HARBOR insurance coverage or bond has been reduced, by payments to other persons injured in the accident, to an amount less than the third-party bodily injury liability limit of this policy; or
- (c) The insurer writing HARBOR insurance coverage or bond did not provide coverage or HARBOR insurer is or becomes insolvent.

The term "uninsured motor vehicle" shall not include a motor vehicle that is:

- (1) Insured under the liability coverage of this policy; or
- (2) Owned by you, the named insured, or your spouse residing in your household; or
- (3) Self-insured within the meaning of the financial responsibility law of the state in which the motor vehicle is registered, or any similar state or federal law, to the extent that the required amount of HARBOR coverage is equal to, or greater than, the third-party bodily injury liability limits of this policy; or
- (4) Owned by the United States of America, Canada, a state, a political subdivision of any HARBOR government or an agency of any of them; or
- (5) A land motor vehicle or trailer, while located for use as a residence or premises and not as a motor vehicle or while operated on rails or crawler-treads; or
- (6) A farm type vehicle or equipment designed for use principally off public roads, except while actually upon public roads.

d. Occupying

The term "occupying" means in, upon, entering into or exiting from a motor vehicle.

e. State

The term "state" means a state, territory or possession of the United States, the District of Columbia or a province of Canada.

2. Damages For Bodily Injury Caused By Uninsured Motor Vehicles

We will insure FAIRMOUNT FABRICATION entitled to damages as operator of an uninsured motor vehicle because of MERIDIAN AUTOMOTIVE SERVICES HARBOR.

tenance or use, subject to the Exclusions, Conditions, Limits and other provisions set forth in this SUM endorsement.

3. SUM Coverage Period And Territory

This SUM coverage applies only to accidents that occur:

- a. During the policy period shown in the Declarations; and
- b. In the United States, its territories or possessions, or Canada.

EXCLUSIONS

This SUM coverage does **not** apply to:

1. Bodily injury to an insured, including care or of services received by an insured, if HARBOR insured, HARBOR insured's legal representatives or person entitled to payment under this coverage, without our written consent, settles any lawsuit against any person or organization that may be legally liable for HARBOR injury, care or loss of services, however the provision shall be subject to Condition 9.;
2. Bodily injury to an insured incurred while occupying insured BLUE FORK MOTORWORKS SUM claim is made or is not a newly acquired or replacement motor vehicle covered under the terms of this policy; or
3. Non-economic to an insured TALLGRASS MECHANICAL York State, unless a serious injury as defined in Section 5102(d) of the New York Insurance Law.

CONDITIONS

1. Policy Provisions

None of the Insuring Agreements, Exclusions or Conditions of the policy ^{VANTAGE} apply to this SUM coverage except: "Duty The Event Of Accident, Claim, Suit Or Loss", "Fraud" and "Ending This Policy" if applicable.

2. Notice And Proof Of Claim

As soon as practicable, the insured or other person making a claim ^{VANTAGE} give us written notice of claim under this coverage.

a. As soon as practicable after our written request, the insured or other person making a claim ^{VANTAGE} give us written proof of claim, under which if required, including full particulars of the nature and extent of the injuries, treatment and other details we need to determine the SUM amount payable.

b. The insured and the other person making claim hereunder ^{VANTAGE}, as may reasonably be required, submit examinations under oath by any person we name to subscribe the same. Proof of claim ^{VANTAGE} be made upon forms we furnish unless we fail to furnish such forms within 15 calendar days after receiving notice of claim.

3. Medical Reports

The insured ^{VANTAGE} submit to physical examinations by physicians we select when and as often as necessary. The insured, if incapacitated, (or in the case of a minor, the insured's parent or guardian) shall authorize the insured ^{VANTAGE} to obtain copies of relevant medical reports and records.

4. Notice Of Legal Action

If the insured ^{FAIRMOUNT WORKS} representative brings a lawsuit against a person or organization legally responsible for the use of a motor vehicle involved in the accident, a copy of the summons and complaint or other process served in connection with the lawsuit ^{VANTAGE} be for the insured ^{FAIRMOUNT WORKS} immediately upon receipt of the lawsuit. ^{WINSLOW BUILDERS}

5. SUM Limits And Maximum Payments

a. The SUM limit payable under this endorsement ^{VANTAGE} be determined as follows:

(1) If an accident results in bodily injury excluding death to one or more persons, then we will provide the SUM limit stated in the Declarations; or

(2) If an accident results in the death of one or more persons, then we will provide the greater of the SUM limit stated in the Declarations or \$50,000 for such bodily injury resulting in death sustained by one person as the result of any one accident and, subject to this per person limit, \$100,000 for such bodily injury resulting in death sustained by two or more persons as the result of any one accident; or

(3) If an accident results in both bodily injury to one or more persons and the death of one or more persons, then we will provide the greater of the SUM limits stated in the Declarations or the limits required by the mandatory uninsured motorists (UM) coverage as follows:

\$25,000 per injured person and, subject to this per person limit,

\$50,000 to two or more persons injured as the result of any one accident; and

\$50,000 per person for bodily injury resulting in death and, subject to this per person limit,

\$100,000 to two or more persons for bodily injury resulting in death as the result of any one accident.

b. Regardless of the number of insureds, our maximum payment under this SUM endorsement ^{VANTAGE} be the difference between:

(1) The SUM limit; and

(2) The motor vehicle bodily injury liability insurance or benefit payable to the insured ^{FAIRMOUNT WORKS} representative, less the amount of any other insurance or benefit payable to persons that may be legally liable for the bodily injury sustained by the insured.

c. The SUM limit shown on the Declarations is the amount of coverage for all damages due to bodily injury in any one accident.

6. Non-Stacking

Regardless of the number of motor vehicles involved, persons covered, claims made, motor vehicles or premiums shown in this policy or premium paid, the limits, whether for UM coverage or SUM coverage, shall never be added together or combined for two or more motor vehicles to determine the extent of insurance coverage available to an insured who was injured in the same accident.

7. Priority Of Coverage

If an insured
SUM coverage

maximum amount such insured may recover shall not exceed the highest limit of such coverage for any one motor vehicle under any one policy and the following order of priority shall apply:

- a. A policy covering a motor vehicle occupied by the injured person at the time of the accident;
- b. A policy covering a motor vehicle not involved in the accident under which the injured person is a named insured; and
- c. A policy covering a motor vehicle not

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Coverage available under a lower priority policy applies only to the extent that it exceeds the coverage of a higher priority policy.

8. Exhaustion Required

Except as provided in Condition 9., we will pay under this SUM coverage only after the limits of liability have been exhausted under all motor vehicle bodily injury liability insurance policies or bonds applicable at the time of the accident in regard to any one person who may be legally liable for the bodily injury sustained by the insured.

9. Release Or Advance

- a. In accidents involving the insured and one or more negligent parties, if such insured settles with any such party for the available limit of the motor vehicle bodily injury liability coverage of such party, a release may be executed with such party after thirty calendar days from our receipt of your written notice to us, unless within this time period we agree to advance such settlement amounts to the insured in return for the cooperation of the insured in our lawsuit on behalf of the insured.
- b. We shall have a right to the proceeds of any such lawsuit equal to the amount advanced to the insured and any additional amounts paid under this SUM coverage. Any excess above those amounts shall be paid to the insured.
- c. An insured shall not otherwise settle with any negligent party, without our written consent, such that our rights would be impaired.

10. Non-Duplication

This SUM coverage shall not duplicate any of the following:

- a. Benefits payable under workers' compensation or other similar laws;
- b. Non-occupational disability benefits under New York Workers' Compensation Law article nine or other similar law;
- c. Any amounts recovered or recoverable pursuant to New York Insurance Law article fifty-one or any similar motor vehicle insurance payable without regard to fault;
- d. Any valid or collectible motor vehicle medical payments insurance; or
- e. Any amounts recovered as bodily injury damages from sources other than motor vehicle bodily injury liability insurance policies or bonds.

11. Arbitration

- a. If any insured makes a claim under this SUM coverage such insured damages from uninsured motor vehicle because of bodily injury sustained by the insured, or we do not agree as to the amount of payment that may be owing under this SUM coverage, then, at the option and upon written demand of such insured, the matter or matters upon which such insured and we do not agree shall be settled by arbitration, administered by the American Arbitration Association, pursuant to procedures approved by the Superintendent of Financial Services for this purpose.
- b. If the maximum amount of SUM coverage provided by this endorsement equals the amount of coverage required to be provided by New York Insurance Law section 3420(f)(1) and New York Vehicle and Traffic Law Article 6 or 8, then such disagreement shall be settled by such arbitration procedures under which the insured award rendered entered in any court having jurisdiction thereof, and any such insured and we each agree to be bound by any award made by the arbitrator as to this SUM coverage. For purposes of this Condition, the term "insured" includes any person authorized to act on behalf of the insured.

12. Subrogation

If we make a payment under this SUM coverage, then we have the right to recover the amount of the payment from any person legally responsible for the bodily injury or loss of the person to whom, or for whose benefit, such payment was made to the extent of the payment. The insured or any person acting on behalf of the insured must do whatever is necessary to transfer this right of recovery to us. Except as permitted by Condition 9., such person shall do nothing to prejudice this right.

13. Fairmount Industries

We shall pay any amount due under this SUM coverage to the insured or, at our option, to a person authorized by law to receive such payment or to a person legally entitled to recover the damages which the payment represents.

14. Ridgeway Mechanical

No law insured has first SUM coverage.

FAIRMOUNT ENTERPRISES

15. Survivor Rights

If you or your spouse, if a resident of the same household, dies, then this SUM endorsement shall cover:

- a. The survivor as named insured;
- b. The decedent named insured CLEARWATER ENTERPRISES the scope of such; and
- c. Any relative who was an insured at the time of such death.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

AUTO MEDICAL PAYMENTS COVERAGE

This endorsement modifies insurance provided under the following:

BUSINESS AUTO COVERAGE FORM
GARAGE COVERAGE FORM
MOTOR CARRIER COVERAGE FORM
TRUCKERS COVERAGE FORM

With respect to coverage provided by this endorsement, the provisions of the Coverage Form apply unless modified by the endorsement.

A. Coverage

We will pay reasonable expenses incurred for necessary medical and funeral services to or for an "insured" who sustains "bodily injury" caused by "accident". We will pay only those expenses incurred, for services rendered within three years from the date of the "accident".

B. Who Is An Insured

1. You while "occupying" or, while a pedestrian, when struck by any "auto".
2. If you are an individual, any "family member" while "occupying" or, while a pedestrian, when struck by any "auto".
3. Anyone else "occupying" a covered "auto" or a temporary substitute for a covered "auto". The covered "auto" must be out of service because of its breakdown, repair, servicing, loss or destruction.

C. Exclusions

This insurance does not apply to any of the following:

1. "Bodily injury" sustained by an "insured" while "occupying" a vehicle located for use as a premises.
2. "Bodily injury" sustained by you or any "family member" while "occupying" or struck by any vehicle (other than a covered "auto") owned by you or furnished or available for your regular use.

3. "Bodily injury" sustained by any "family member" while "occupying" or struck by any vehicle (other than a covered "auto") owned by or furnished or available for the regular use of any "family member".
4. "Bodily injury" to your "employee" arising out of and in the course of employment by you. However, we will cover "bodily injury" to your domestic "employees" if not entitled to workers' compensation benefits. For the purposes of this endorsement, a domestic "employee" is a person engaged in household or domestic work performed principally in connection with a residence premises.
5. "Bodily injury" to an "insured" while working in a business of selling, servicing, repairing or parking "autos" unless that business is yours.
6. "Bodily injury" arising directly or indirectly out of:
 - a. War, including undeclared or civil war;
 - b. Warlike action by a military force, including action in hindering or defending against an actual or expected attack, by any government, sovereign or other authority using military personnel or other agents; or
 - c. Insurrection, rebellion, revolution, usurped power, or action taken by governmental authority in hindering or defending against any of these.

7. "Bodily injury" to anyone using a vehicle without a reasonable belief that the person is entitled to do so.
8. "Bodily Injury" sustained by an "insured" while "occupying" any covered "auto" while used in any professional racing or demolition contest or stunting activity, or while practicing for such contest or activity. This insurance also does not apply to any "bodily injury" sustained by an "insured" while the "auto" is being prepared for such a contest or activity.

D. Limit Of Insurance

Regardless of the number of covered "autos", "insureds", premiums paid, claims made or vehicles involved in the "accident", the most we will pay for "bodily injury" for each "insured" injured in any one "accident" is the Limit Of Insurance for Auto Medical Payments Coverage shown in the Declarations.

No one will be entitled to receive duplicate payments for the same elements of "loss" under this coverage and any Liability Coverage Form, Uninsured Motorists Coverage Endorsement or Underinsured Motorists Coverage Endorsement attached to this Coverage Part.

E. Changes In Conditions

The Conditions are changed for Auto Medical Payments Coverage as follows:

1. The Transfer Of Rights Of Recovery Against Others To Us Condition does not apply.
2. The reference in Other Insurance in the Business Auto and Garage Coverage Forms and Other Insurance – Primary And Excess Insurance Provisions in the Truckers and Motor Carrier Coverage Forms to "other collectible insurance" applies only to other collectible auto medical payments insurance.

F. Additional Definitions

As used in this endorsement:

1. "Family member" means a person related to you by blood, marriage or adoption who is a resident of your household, including a ward or foster child.
2. "Occupying" means in, upon, getting in, on, out or off.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

DRIVE ASSURED EXTENSION ENDORSEMENT

This endorsement modifies insurance provided under the following:

BUSINESS AUTO COVERAGE FORM

All coverages provided by this endorsement are subject to the provisions applicable to the Business Auto Coverage Form, including the deductible, except as provided below.

AMENDMENTS TO SECTION II – LIABILITY COVERAGE

If this policy provides Auto Liability coverage, the following extensions are applicable accordingly:

1. NEWLY ACQUIRED OR FORMED SUBSIDIARY, CORPORATION OR FIRM

The following is added to Paragraph **A.1. Who is An Insured** Provision:

It is agreed that the Named Insured shown in the Declarations includes any subsidiary, corporation, or firm of a "similar business nature", that is newly acquired or formed during the term of this policy and over which you maintain ownership of 50% or more interest, if there is no other similar insurance available to that organization. However, coverage does not apply to "bodily injury", "property damage" or "loss" that occurred before you acquired or formed the organization. No person or organization is an "insured" with respect to the conduct of any current or past partnership or joint venture that is not shown as a Named Insured in the Declarations. Coverage under this provision is afforded only until the 180th day after you acquire or form the subsidiary, corporation, or firm, or the end of the policy period, whichever is earlier. As used in this extension of coverage, the phrase, "similar business nature" means of a nature which an ordinary person would consider to be closely related to your business.

2. ADDITIONAL INSURED BY CONTRACT, AGREEMENT OR PERMIT

The following is added to Paragraph **A.1. Who is An Insured** Provision:

Any person or organization with whom you have agreed in a written contract, written agreement or written permit requiring you to provide insurance such as is afforded by this Business Auto Coverage Form is an additional insured but only to the extent such person or organization is liable for "bodily injury" or "property damage" to which this insurance applies and only to the extent that person or organization qualifies as an "insured" under the Who Is An Insured Provision. The insurance is afforded to any such additional insured only if:

- (1) It is required in the written contract, written agreement or written permit identified in this section;
- (2) It is permitted by law; and
- (3) The written contract or written agreement has been executed or written permit issued before the "bodily injury" or "property damage" occurs and that is in effect during the policy period.

3. EMPLOYEES AS INSURED

The following is added to Paragraph **A.1. Who is An Insured** Provision:

Any "employee" of yours is an "insured" while using a covered "auto" you do not own, hire, or borrow in your business or your personal affairs.

4. EMPLOYEE HIRED AUTOS

The following is added to Paragraph **A.1. Who is An Insured** Provision:

An "employee" of yours is an "insured" while operating an "auto" hired or rented under a contract or agreement in an "employees" name, with your permission, while performing duties related to the conduct of your business. However, any "auto" that is leased, hired, rented, or borrowed in an "employee's" name with a driver is not a covered "auto".

5. EXPENSES FOR BAIL BONDS AND LOSS OF EARNINGS INCREASED LIMITS

Paragraphs **(2)** and **(4)** of **A.2.a. Supplementary Payments** are deleted in their entirety and replaced with the following:

- (2)** Up to \$3,000 for the cost of bail bonds (including bonds for related traffic law violations) required because of an "accident" we cover. We do not have to furnish these bonds.
- (4)** All reasonable expenses incurred by the "insured" at our request, including actual loss of earnings up to \$500 per day because of time off from work.

AMENDMENTS TO SECTION III – PHYSICAL DAMAGE COVERAGE

Unless otherwise stated, if this policy provides Comprehensive, Specified Causes of Loss or Collision coverage, the following extensions are applicable for those "autos" for which Comprehensive, Specified Causes of Loss or Collision Coverage is purchased:

6. TOWING AND LABOR

The following replaces Paragraph **A.2. Towing**:

We will pay up to the following limits for towing and labor costs incurred each time a covered "auto" is disabled:

- a.** \$100 for a covered "auto" rated and classified as private passenger vehicle, or the limit indicated on the Declarations page, whichever is greater.
- b.** \$150 for a covered "auto" rated and classified as a light, medium, heavy, or extra heavy truck.

However, the labor must be performed at the place of disablement.

7. GLASS BREAKAGE DEDUCTIBLE WAIVER

The following is added to Paragraph **A.3. Glass Breakage – Hitting A Bird Or Animal – Falling Objects Or Missiles**:

No deductible for a covered "auto" will apply to glass damage if the glass is repaired rather than replaced.

8. INCREASED TRANSPORTATION EXPENSES

Paragraph **A.4. Coverage Extensions, a. Transportation Expenses** is replaced by the following:

We will pay up to \$50 per day to a maximum of \$1,500 for temporary transportation expenses incurred by you because of the total theft of a covered "auto". We will pay only for those covered "autos" for which you carry either Comprehensive or Specified Causes of Loss Coverage. We will pay for temporary transportation expenses incurred during the period beginning 24 hours after the theft and ending, regardless of the policy's expiration, when the covered "auto" is returned to use or we pay for its "loss".

9. INCREASED HIRED AUTO LOSS OF USE EXPENSES

The following replaces the last sentence of Paragraph **A.4.b. Loss Of Use Expenses**:

However, the most that we will pay for expenses for loss of use is \$50 per day, to a maximum of \$1,500.

10. AUTOMATIC HIRED AUTO PHYSICAL DAMAGE

The following provision is added to Paragraph **A.4. Coverage Extensions**:

c. Automatic Hired Auto Physical Damage

The following extension is applicable if hired "autos" are covered "autos" for Liability Coverage and if Physical Damage Coverage of Comprehensive, Specified Causes of Loss or Collision is provided on this policy:

- (1)** Physical Damage coverage is hereby extended to apply to Physical Damage "loss" to "autos" leased, hired, rented or borrowed without a driver. We will provide coverage equal to the broadest coverage available to any covered "auto" shown in the Declarations. But the most we will pay for "loss" to each "auto" under this coverage extension is the lesser of:
 - a.** The actual cash value of the damaged or stolen property as of the time of the "loss";
 - b.** The cost of repairing or replacing the damaged or stolen property with other property of like kind and quality; or
 - c.** \$50,000.
- (2)** Hired Auto Physical Damage is excess over any other collectible insurance.
- (3)** A deductible applies for each covered "auto". The deductible will be equal to the lowest deductible applicable to any owned "auto" for that coverage.

11. RENTAL REIMBURSEMENT EXPENSES

The following provision is added to Paragraph A.4. Coverage Extensions:

d. Rental Reimbursement Expenses

We will pay up to \$50 per day, for 30 days, to a maximum of \$1,500, or the limit indicated on the Declarations page, whichever is greater, for rental reimbursement expense incurred by you for the rental of an "auto" because of a "loss", other than theft, to a covered "auto" while such "auto" is being repaired due to a "loss" covered under Comprehensive Coverage, Specified Causes of Loss Coverage or Collision Coverage. We will pay for expenses incurred during the period beginning 24 hours after the "loss" and ending, regardless of the policy's expiration, when the covered "auto" is returned to use or we pay for its "loss". Coverage is available only for a "loss" that corresponds with coverage you have purchased.

12. PERSONAL EFFECTS COVERAGE

The following provision is added to Paragraph A.4. Coverage Extensions:

e. Personal Effects Coverage

If you carry Comprehensive Coverage for a stolen covered "auto", we will pay up to \$750 for personal effects stolen with the "auto".

This coverage is excess over other collectible insurance and no deductible applies.

13. MALFUNCTION EXTENSION FOR AIRBAGS

The following provision is added to Paragraph B. Exclusions, 3.a.

Wear and tear, freezing, mechanical or electrical breakdown does not apply for malfunction of airbags.

We will pay up to a maximum of \$1,000 for any one "loss" if:

- a. That "auto" is a covered "auto" for Comprehensive Coverage under this policy;
- b. The airbags are not covered under any warranty; and
- c. The airbags were not intentionally inflated.

14. EXPANDED AUDIO, VISUAL, AND DATA ELECTRONIC EQUIPMENT COVERAGE

Exclusion B.4. does not apply to the following:

- (1) Global positioning systems;
- (2) Telematics devices; or
- (3) Electronic equipment that reproduces, receives, or transmits audio, visual or data signals and accessories used with such equipment:
 - a. Permanently installed in or upon the covered "auto" at the time of the "loss";

b. Removable from a housing unit that is permanently installed in the covered "auto";

c. Designed to be solely operated by use of power from the "auto's" electrical system; or

d. Designed to be used solely in or upon the covered "auto".

(4) The most we will pay for each covered "loss" of any such equipment listed in (1), (2), or (3) above in any one "loss" is the lesser of:

a. The actual cash value of the damaged or stolen property as of the time of "loss";

b. The cost of repairing or replacing the damaged or stolen property with other property of like kind and quality; or

c. \$1,500.

This coverage is excess over other collectible insurance and no deductible applies.

15. TWO OR MORE DEDUCTIBLES

The following provision is added to D. Deductibles:

If another Preferred Mutual Granite Row Granite Row policy or coverage form, that policy or coverage form, applies to the same "loss", the following applies:

(1) If the deductible under this Business Auto Coverage Form is equal in amount or smaller then it will be waived.

(2) If the deductible under this Business Auto Coverage form is not the smaller (or smallest) deductible, it will be reduced by the amount of the smaller (or smallest) deductible.

(3) Granite Row r another Preferred Mutual policy or coverage form is use.

AMENDMENTS TO SECTION IV – BUSINESS AUTO CONDITIONS

16. NOTICE OF ACCIDENT, CLAIM, SUIT, OR LOSS

The following is added to Paragraph **A. Loss Conditions, 2.a. Duties in The Event of Accident, Claim, Suit or Loss.**

Failure by an agent, servant, or “employee” (except an executive officer, or individual designated by an executive officer to give such notice) of the “insured” to notify us of any “accident”, “claim”, “suit” or “loss” of which such person has knowledge shall not invalidate the insurance afforded by this Coverage Part with respects to the Named Insured.

17. THEFT EXPENSE

The following is added to **A. Loss Conditions, 4. Loss Payment – Physical Damage Coverages:**

Regardless of the option we select, it is agreed and understood that in the event of a theft of a covered “auto”, we will pay those expenses incurred for the return of the covered “auto” to the Named Insured.

FAIRMOUNT HOLDINGS

The following replaces Paragraph **A. Loss Conditions 5. Transfer Of Rights Of Recovery Against Others To Us:**

If any person or organization for or for whom we make payments under this Coverage Form has rights to recover damages from another, those rights are transferred to us. That person or organization must do everything necessary to secure our rights and must do nothing after an “accident” or “loss” to impair them.

We waive any rights of recovery that we may have against any person or organization to the extent required of you by a written contract executed prior to any “accident” or “loss”, provided that the “accident” or “loss” arises out of the operations contemplated by such contract. The waiver applies only to the person or organization designated in and executing such contract.

AMENDMENTS TO SECTION V – DEFINITIONS

19. BODILY INJURY REDEFINED

The following replaces Paragraph **C. “Bodily Injury” of Section V - Definitions:**

“Bodily Injury” means bodily injury, sickness or disease sustained by a person, including mental anguish, injury or illness, emotional distress and psychological effects and/or death resulting from any of these.

PREFERRED MUTUAL Granite Row

One Preferred Way, New Berlin, New York 13411-1896

**-OPERATIVE INSURER
HAVING SPECIAL REGULATIONS AS FOLLOWS:**

Tallgrass Tallgrass sh designated as
al Granite Row Granite Row under which
name it shall trans The principal
business office of the Company shall be located in the
village of New Berlin, Chenango County, New York.

al meeting of the policyholders of Tallgrass
Tallgrass shall be held on the fourth Tuesday
in each year at two o'clock p.m. at the
principal business office of the Company for the
purpose of electing Directors and transacting such
other business as may properly come before it. Notice
of the time, place and object of each annual meeting
of the Company shall be published once in each week
for two successive weeks immediately preceding such
meeting, in at least one newspaper published in
Chenango County, New York.

At each
insured TALLGRASS INDUSTRIES
either in
by proxy shall file same with the Secretary of the
Company at least thirty days prior to the annual
meeting.

It shall be the duty of the Secretary to keep proper
books, including a policy register, in which the
Secretary shall enter a complete record of the
transactions of the Company and of its Board of
Directors and Executive Committee, which books shall
at all times sho y the condition, affairs
and business of Tallgrass and shall be open for
inspection of eve ed, each business day
from nine o'clock in the forenoon until four o'clock in
the afternoon.

Persons may become insured in Tallgrass ,
own property within the t h Tallgrass
Tallgrass is authorized to do business, upon the s
conditions as original members and such
s may be prescribed by the Bylaws of
Tallgrass .

All persons who shall become insured in Tallgrass
shall be members thereof during the peri
or policies are in force and no longer.

The holders of policies of Tallgrass shall not be
subject to any liability for a

Non-r wn property within the territory in
which Tallgrass may do business, may be insured
therei ve all the rights and privileges of
but shall not be eligible to hold office in
Tallgrass .

The Bylaws of Tallgrass may be amended only by
a majority vot bers who are present in
person or by proxy at any annual meeting, except that
the Board of Directors may amend the Bylaws as to
any provisions which do not impair the member's
rights or enlarge their obligations under insurance
policies. No Bylaws or amendment shall be effective
unless and until it shall have been approved in writing
by the Superintendent of Insurance in the state of New
York.

**In Witness Whereof, the Company has caused this
policy to be executed and attested; but in
jurisdictions so requiring, this policy shall not be
valid unl gned by a duly authorized
Agent of Tallgrass .**



Benedikt Sander Pauline Ashworth
President Secretary

The Preferred M Granite Row Granite Row
founded in 1896 by Harbor Point Motorworks Harbor Point Motorworks
began and to this
headquarters in New Berlin, New York. Due to the
Company's growth and need for future expansion, in
1993 a satellite office, which houses all data
processing operations, was opened in Norwich, New
York.

ut the years, Preferred Mutual Granite Row
Granite Row has continued to expand the d
ffered to the independent agents who
represent the Company and its policyholders. We
invite you to contact your agent to discuss other
product offerings to respond to your insurance needs.